

The Jammu and Kashmir Reorganisation Act, 2019

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Union of India - Act

The Jammu and Kashmir Reorganisation Act, 2019

UNION OF INDIA

India

The Jammu and Kashmir Reorganisation Act, 2019

Act 34 of 2019

Published in Gazette of India on 9 August 2019

Commenced on 9 August 2019

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[Amended by

THE JAMMU AND KASHMIR REORGANISATION (AMENDMENT) ACT, 2021 (Act 2 of 2021)

on

25 February 2021

]

The Jammu and Kashmir Reorganisation Act, 2019

(Act

No. 34 of 2019

)

Last Updated 13th September, 2019

Statement of Objects and Reasons. - The Ladakh Division of the State of Jammu and Kashmir has a large area but is

sparsely populated with a very difficult terrain. There has been a long pending demand of people of Ladakh, to give it the status of a Union Territory to enable them to realise their aspirations. The Union Territory of Ladakh will be without Legislature.

Further, keeping in view the prevailing internal security situation, fuelled by cross border terrorism in the existing State of Jammu and Kashmir, a separate Union Territory for Jammu and Kashmir is being created. The Union Territory of Jammu and Kashmir will be with legislature.

[Dated 9.8.2019.]

The Following Act of Parliament received the assent of the President on the 9th August, 2019 and is hereby published for general information:-

An Act to provide for the reorganisation of the existing State of Jammu and Kashmir and for matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Seventieth Year of the Republic of India as follows:-

Part-I Preliminary

1.

Short title.

- This Act may be called the Jammu and Kashmir Reorganisation Act, 2019.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"appointed day" means the day which the Central Government may, by notification in the Official Gazette, appoint;

(b)

"article" means an article of the Constitution;

(c)

"assembly constituency" and "parliamentary constituency" have the same meanings as in the Representation of the People Act, 1950;

(d)

"Election Commission" means the Election Commission appointed by the President under article 324;

(e)

"existing State of Jammu and Kashmir" means the State of Jammu and Kashmir as existing immediately before the appointed day, comprising the territory which immediately before the commencement of the Constitution of India in the Indian State of Jammu and Kashmir;

(f)

"law" includes any enactment, ordinance, regulation, order, bye-law, rule, scheme, notification or other instrument having, immediately before the appointed day, the force of law in the whole or in any part of the existing State of Jammu and Kashmir;

(g)

"Legislative Assembly" means Legislative Assembly of Union territory of Jammu and Kashmir;

(h)

"Lieutenant Governor" means the Administrator of the Union territory appointed by the President under article 239;

(i)

"notified order" means an order published in the Official Gazette;

(j)

"population ratio", in relation to the Union territory of Jammu and Kashmir, and Union territory of Ladakh means the ratio as per 2011 Census;

(k)

"Scheduled Castes" in relation to the Union territory means such castes, races or tribes or parts of groups within such castes, races or tribes as are deemed under article 341 to be Scheduled Castes in relation to that Union territory;

(l)

"Scheduled Tribes" in relation to the Union territory means such tribes or tribal communities or parts of or groups within such tribes or tribal communities as are deemed under article 342 to be Scheduled Tribes in relation to that Union

territory;

(m)

"sitting member", in relation to either House of Parliament or of the Legislature of the existing State of Jammu and Kashmir, means a person who immediately before the appointed day, is a member of that House;

(n)

"Union territory", in relation to the existing State of Jammu and Kashmir, means the Union territory of Jammu and Kashmir or Union territory of Ladakh, as the case may be;

(o)

"transferred territory" means the territory which on the appointed day is transferred from the existing State of Jammu and Kashmir to Union territories formed under sections 3 and 4 of this Act; and

(p)

any reference to a district, tehsil or other territorial division of the existing State of Jammu and Kashmir shall be construed as a reference to the area comprised within that territorial division on the appointed day.

Part II ? Reorganisation of the State of Jammu and Kashmir

3.

Formation of Union territory of Ladakh without Legislature.

- On and from the appointed day, there shall be formed a new Union territory to be known as the Union territory of Ladakh comprising the following territories of the existing State of Jammu and Kashmir, namely: -

"Kargil and Leh districts",

and thereupon the said territories shall cease to form part of the existing State of Jammu and Kashmir.

4.

Formation of Union territory of Jammu and Kashmir with Legislature.

- On and from the appointed day, there shall be formed a new Union territory to be known as the Union territory of Jammu and Kashmir comprising the territories of the existing State of Jammu and Kashmir other than those specified in section 3.

5.

Governor of existing State of Jammu and Kashmir to be common Lieutenant Governor.

- On and from the appointed day, the Governor of the existing State of Jammu and Kashmir shall be the Lieutenant Governor for the Union territory of Jammu and Kashmir, and Union territory of Ladakh for such period as may be determined by the President.

6.

Amendment of First Schedule to the Constitution.

- On and from the appointed day, in the First Schedule to the Constitution, under the heading - "I. THE STATES",-

(a)

entry 15 shall be deleted.

(b)

entries from 16 to 29 shall be renumbered as 15 to 28.

(c)

under the heading -"II. UNION TERRITORIES",-

after entry 7, the following entries shall be inserted, namely:-

"8. Jammu and Kashmir: The territories specified in section 4 of the Jammu and Kashmir Reorganization Act, 2019".

"9. Ladakh: The territories specified in section 3 of the Jammu and Kashmir Reorganization Act, 2019".

7.

Saving powers of the Government of Union territory of Jammu and Kashmir.

- Nothing in the foregoing provisions of this Part shall be deemed to affect the power of the Government of successor Union territory of Jammu and Kashmir to alter, after the appointed day, the name, area or boundaries of any district or other territorial division in that Union territory.

Part III ? Representation in the Legislatures

The Council of States

8.

Amendment of Fourth Schedule to Constitution.

- On and from the appointed day, in the Fourth Schedule to the Constitution, in the Table,-

(a)

entry 21 shall be deleted;

(b)

entries 22 to 31 shall be renumbered as entries 21 to 30, respectively;

(c)

after entry 30, the following entry shall be inserted, namely:-

"31. Jammu and Kashmir4"

9.

Allocation of sitting members.

(1)

On and from the appointed day, four sitting members of the Council of States representing the existing State of Jammu and Kashmir shall be deemed to have been elected to fill the seats allotted to the Union territory of Jammu and Kashmir, as specified in the First Schedule to this Act.

(2)

The term of office of such sitting members shall remain unaltered.

The House of the People

10.

Representation in House of the People.

- On and from the appointed day, there shall be allocated five seats to the successor Union territory of Jammu and Kashmir and one seat to Union territory of Ladakh, in the House of the People, and the First Schedule to the Representation of the People Act, 1950 shall be deemed to be amended accordingly.

11.

Delimitation of Parliamentary Constituencies Order 1976.

(1)

On and from the appointed day, the Order, 1976 shall stand amended as directed in the Second Schedule of this Act.

(2)

The Election Commission may conduct the elections to the House of the People for the Union territory of Jammu and Kashmir and Union territory of Ladakh as per the allocation of seats specified in the Delimitation of Parliamentary Constituencies Order, 1976 as amended by this Act.

12.

Provision as to sitting members.

(1)

Every sitting member of the House of the People representing a constituency which, on the appointed day by virtue of the provisions of section 10, stands allotted, with or without alteration of boundaries, to the successor Union territory of Jammu and Kashmir or Union territory of Ladakh, as the case may be, shall be deemed to have been elected to the House of the People by that constituency as so allotted.

(2)

The term of office of such sitting members shall remain unaltered.

The Lieutenant Governor and The Legislative Assembly of Union territory of Jammu and Kashmir

13.

Applicability of article 239A of Constitution.

- On and from the appointed day, the provisions contained in article 239A, which are applicable to "Union territory of Puducherry", shall also apply to the "Union territory of Jammu and Kashmir".

14.

Legislative Assembly for the Union Territory of Jammu and Kashmir and its composition.

(1)

There shall be an Administrator appointed under article 239 of the Constitution of India for the Union territory of Jammu and Kashmir and shall be designated as Lieutenant Governor of the said Union territory.

(2)

There shall be a Legislative Assembly for the Union territory of Jammu and Kashmir.

(3)

The total number of seats in the Legislative Assembly of the Union territory of Jammu and Kashmir to be filled by persons chosen by direct election shall be 107.

(4)

Notwithstanding anything contained in sub-section (3), until the area of the Union territory of Jammu and Kashmir under the occupation of Pakistan ceases to be so occupied and the people residing in that area elect their representatives -

(a)

twenty four seats in the Legislative Assembly of Union territory of Jammu and Kashmir shall remain vacant and shall not be taken into account for reckoning the total membership of the Assembly; and

(b)

the said area and seats shall be excluded in delimiting the territorial constituencies as provided under PART V of this Act.

(5)

On and from the appointed day, the Delimitation of Assembly Constituencies Order, 1995, as applicable to Union territory of Jammu and Kashmir, shall stand amended as directed in the Third Schedule of this Act.

(6)

Seats shall be reserved for the Scheduled Castes and the Scheduled Tribes in the Legislative Assembly of the Union territory of Jammu and Kashmir.

(7)

The number of seats reserved for the Scheduled Castes and the Scheduled Tribes in the Legislative Assembly of the Union territory of Jammu and Kashmir under sub-section (6) shall bear, as nearly as may be, the same proportion to the total number of seats in the Assembly as the population of the Scheduled Castes in the Union territory of Jammu and Kashmir or of the Scheduled Tribes in the Union territory of Jammu and Kashmir, in respect of which seats are so reserved, bears to the total population of the Union territory of Jammu and Kashmir.

Explanation: In this sub-section, the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published:

Provided that the reference in this Explanation to the last preceding census of which the relevant figures have been published shall, until the relevant figures for the first census taken after the year 2026 have been published, be construed as a reference to the 2011 census.

(8)

Notwithstanding anything in sub-section (6), the reservation of seats for the Scheduled Castes or Scheduled Tribes in the Legislative Assembly of the Union territory of Jammu and Kashmir shall cease to have effect on the same date on which the reservation of seats for the Scheduled Castes or the Scheduled Tribes in the House of the People shall cease to have effect under article 334 of the Constitution of India:

(9)

In the Second Schedule to the Representation of the People Act, 1950, under the heading :-"I. The States:"

"(a) entry 10 shall be deleted".

"(b) entries 11 to 29 shall be renumbered as 10 to 28".

(10)

In the Second Schedule to the Representation of the People Act, 1950 , under the heading :-"II. Union Territories"

(a)

after entry 2, the following entries shall be inserted, namely:-

1

2

3

4

5

6

7

""3. Jammu and Kashmir

83

6

....

83

6

....."

(11)

The provisions of articles 324 to 327 and 329 of the Constitution of India, shall apply in relation to the Union territory of Jammu and Kashmir, the Legislative Assembly and the members thereof as they apply, in relation to a State, the Legislative Assembly of a State and the members thereof respectively; and any reference in articles 326 and 329 to "appropriate Legislature" shall be deemed to be a reference to Parliament.

15.

Representation of women.

- Notwithstanding anything in sub-section (3) of section 14 the Lieutenant Governor of the successor Union territory of Jammu and Kashmir may nominate two members to the Legislative Assembly to give representation to women, if in his opinion, women are not adequately represented in the Legislative Assembly.

16.

Qualification for membership of Legislative Assembly.

- A person shall not be qualified to be chosen to fill a seat in the Legislative Assembly unless he-

(a)

is a citizen of India and makes and subscribes before some person authorised in that behalf by the Election Commission an oath or affirmation according to the form set out for the purpose in the Fourth Schedule of this Act;

(b)

is not less than twenty-five years of age; and

(c)

Possesses such other qualifications as may be prescribed in that behalf by or under any law made by the Parliament.

17.

Duration of Legislative Assembly.

- The Legislative Assembly, unless sooner dissolved, shall continue for five years from the date appointed for its first meeting and no longer, and the expiration of the said period of five years shall operate as a dissolution of the Legislative Assembly:

Provided that the said period may, while a Proclamation of Emergency issued under clause (1) of article 352 is in operation, be extended by the President by order for a period not exceeding one year at a time and not extending in any case beyond a period of six months after the Proclamation has ceased to operate.

18.

Sessions of Legislative Assembly, prorogation and dissolution.

(1)

The Lieutenant Governor shall, from time to time, summon the Legislative Assembly to meet at such time and place as he thinks fit, but six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session.

(2)

The Lieutenant Governor may, from time to time, -

(a)

prorogue the House;

(b)

dissolve the Legislative Assembly.

19.

Speaker and Deputy Speaker of Legislative Assembly.

(1)

The Legislative Assembly shall, as soon as may be, choose two members of the Assembly to be respectively Speaker and Deputy Speaker thereof and, so often as the office of Speaker or Deputy Speaker becomes vacant, the Assembly shall choose another member to be Speaker or Deputy Speaker, as the case may be.

(2)

A member holding office as Speaker or Deputy Speaker of the Assembly-

(a)

shall vacate his office if he ceases to be a member of the Assembly;

(b)

may at any time by writing under his hand addressed, if such member is the Speaker, to the Deputy Speaker, and if such member is the Deputy Speaker, to the Speaker, resign his office;

(c)

may be removed from his office by a resolution of the Assembly passed by a majority of all the then members of the Assembly:

Provided that no resolution for the purpose of clause (c) shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution:

Provided further that, whenever the Assembly is dissolved, the Speaker shall not vacate his office until immediately before the first meeting of the Assembly after the dissolution.

(3)

While the office of Speaker is vacant, the duties of the office shall be performed by the Deputy Speaker or, if the office of Deputy Speaker is also vacant, by such member of the Legislative Assembly as may be determined by the rules of procedure of the Assembly.

(4)

During the absence of the Speaker from any sitting of the Legislative Assembly, the Deputy Speaker, or, if he is also absent, such person as may be determined by the rules of procedure of the Assembly, or, if no such person is present, such other person as may be determined by the Legislative Assembly, shall act as Speaker.

(5)

There shall be paid to the Speaker and the Deputy Speaker of the Legislative Assembly, such salaries and allowances as may respectively be fixed by the Legislative Assembly of the Union territory of Jammu and Kashmir by law and, until provision in that behalf is so made, such salaries and allowances as the Lieutenant Governor may, by order determine.

20.

Speaker or Deputy Speaker not to preside while a resolution for his removal from office is under consideration.

(1)

At any sitting of the Legislative Assembly, while any resolution for the removal of the Speaker from his office is under consideration, the Speaker, or while any resolution for the removal of the Deputy Speaker, from his office is under consideration, the Deputy Speaker, shall not, though he is present, preside, and the provisions of sub-section (4) of section 19 shall apply in relation to every such sitting as they apply in relation to a sitting from which the Speaker or, as the case may be, the Deputy Speaker, is absent.

(2)

The Speaker shall have the right to speak in, and otherwise to take part in the proceedings of, the Legislative Assembly while any resolution for his removal from office is under consideration in the Assembly and shall, notwithstanding anything in section 25, be entitled to vote only in the first instance on such resolution or on any other matter during such proceedings but not in the case of an equality of votes.

21.

Special address by Lieutenant Governor to Legislative Assembly.

(1)

At the commencement of the first session after each general election to the Legislative Assembly and at the commencement of the first session of each year, the Lieutenant Governor shall address the Legislative Assembly, and shall inform the Legislative Assembly of the causes of its summons.

(2)

Provision shall be made by the rules regulating the procedure of the Legislative Assembly for the allotment of time for the discussion of matters referred to in such address.

22.

Rights of Ministers and Advocate General as respects Legislative Assembly.

- Every Minister and the Advocate-General for the Union territory of Jammu and Kashmir shall have the right to speak in,

and otherwise to take part in the proceedings of, the Legislative Assembly, and to speak in, and otherwise to take part in the proceedings of, any committee of the Legislative Assembly of which he may be named a member, but shall not by virtue of this section be entitled to vote.

23.

Rights of Lieutenant Governor to address and send messages to the Legislative Assembly.

(1)

The Lieutenant Governor may address the Legislative Assembly and may for that purpose require the attendance of members.

(2)

The Lieutenant Governor may also send messages to the Legislative Assembly whether with respect to a Bill then pending in the Legislative Assembly or otherwise, and when a message so sent, the Legislative Assembly shall with all convenient despatch consider any matter required by the message to be taken into consideration.

24.

Oath or affirmation by members.

- Every member of the Legislative Assembly shall, before taking his seat, make and subscribe before the Lieutenant Governor of the said Union territory, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Fourth Schedule of this Act.

25.

Voting in Assembly, power of Assembly to act notwithstanding vacancies and quorum.

(1)

Save as otherwise provided in this Act, all questions at any sitting of the Legislative Assembly shall be determined by a majority of votes of the members present and voting, other than the Speaker or person acting as such.

(2)

The Speaker, or person acting as such, shall not vote in the first instance, but shall have and exercise a casting vote in the case of an equality of votes.

(3)

The Legislative Assembly shall have power to act notwithstanding any vacancy in the membership thereof, and any proceedings in the Legislative Assembly shall be valid notwithstanding that it is discovered subsequently that some person who was not entitled so to do, sat or voted or otherwise took part in the proceedings.

(4)

The quorum to constitute a meeting of the Legislative Assembly shall be ten members or one-tenth of the total number of members of the Legislative Assembly, whichever is greater.

(5)

If at any time during a meeting of the Legislative Assembly there is no quorum, it shall be the duty of the Speaker, or person acting as such, either to adjourn the Legislative Assembly or to suspend the meeting until there is a quorum.

26.

Vacation of seats.

(1)

No person shall be a member both of Parliament and of the Legislative Assembly, and if a person is chosen a member both of Parliament and of such Assembly, then, at the expiration of such period as may be specified in the rules made by the President, that person's seat in Parliament shall become vacant, unless he has previously resigned his seat in the Legislative Assembly of the said Union territory.

(2)

If a member of the Legislative Assembly-

(a)

becomes subject to any of disqualification mentioned in section 27 or section 28 for membership of the Legislative Assembly; or

(b)

resigns his seat by writing under his hand addressed to the Speaker, and his resignation is accepted by the Speaker, his seat shall thereupon become vacant.

(3)

If for a period of sixty days a member of the Legislative Assembly is without permission of the Assembly absent from all meetings thereof, the Assembly may declare his seat vacant:

Provided that in computing the said period of sixty days, no account shall be taken of any period during which the Assembly is prorogued or is adjourned for more than four consecutive days.

27.

Disqualifications for membership.

(1)

A person shall be disqualified for being chosen as, and for being, a member of the Legislative Assembly-

(a)

if he holds any office of profit under the Government of India or the Government of any State or the Government of Union territory of Jammu and Kashmir or the Government or administration of any other Union territory or other than an office declared by law made by Parliament or by the Legislative Assembly not to disqualify its holder; or

(b)

if he is for the time being disqualified for being chosen as, and for being, a member of either House of Parliament under the provisions of sub-clause (b), subclause

(c)

or sub-clause (d) of clause (1) of article 102 or of any law made in pursuance of that article.

(2)

For the purposes of this section, a person shall not be deemed to hold an office of profit under the Government of India or the Government of any State or the Government of Union Territory of Jammu and Kashmir or the Government of any other Union territory by reason only that he is a Minister either for the Union or for such State or Union territory.

(3)

If any question arises as to whether a member of the Legislative Assembly becomes subject to any of disqualification under the provisions of sub-sections (1) and (2), the question shall be referred for the decision of the Lieutenant Governor and his decision shall be final.

(4)

Before giving any decision on any such question, the Lieutenant Governor shall obtain the opinion of the Election Commission and shall act according to such opinion.

28.

Disqualification on ground of defection for being a member.

- The provisions of the Tenth Schedule to the Constitution shall, subject to the necessary modifications (including modifications for construing references therein to the Legislative Assembly of a State, article 188, article 194 and article 212 as references, respectively, to the Legislative Assembly of Union territory of Jammu and Kashmir, as the case may be, section 24, section 30 and section 50 of this Act), apply to and in relation to the members of the Legislative Assembly of Union territory of Jammu and Kashmir as they apply to and in relation to the members of the Legislative Assembly of a State, and accordingly,-

(a)

the said Tenth Schedule as so modified shall be deemed to form part of this Act; and

(b)

a person shall be disqualified for being a member of the Legislative Assembly if he is so disqualified under the said Tenth Schedule as so modified.

29.

Penalty for sitting and voting before making oath or affirmation or when not qualified or when disqualified.

- If a person sits or votes as a member of the Legislative Assembly before he has complied with the requirements of section 24 or when he knows that he is not qualified or that he is disqualified for membership thereof, or that he is prohibited from doing so by the provisions of any law made by Parliament or the Legislative Assembly of the Union territory of Jammu and Kashmir, he shall be liable in respect of each day on which he so sits or votes to a penalty of five hundred rupees to be recovered as a debt due to the said Union territory.

30.

Powers, privileges, etc., of members.

(1)

Subject to the provisions of this Act and to the rules and standing orders regulating the procedure of the Legislative Assembly, there shall be freedom of speech in the Legislative Assembly.

(2)

No member of the Legislative Assembly shall be liable to any proceedings in any court in respect of anything said or any vote given by him in the Assembly or any committee thereof, and no person shall be so liable in respect of the publication by or under the authority of such Assembly of any report, paper, votes or proceedings.

(3)

In other respects, the powers, privileges and immunities of the Legislative Assembly and of the members and the committees thereof shall be such as are for the time being enjoyed by the House of the People and its members and committees.

(4)

The provisions of sub-sections (1), (2) and (3) shall apply in relation to persons who by virtue of this Act have the right to speak in, and otherwise to take part in the proceedings of, the Legislative Assembly or any committee thereof as they apply in relation to members of the Legislative Assembly.

31.

Salaries and allowances of members.

- Members of the Legislative Assembly shall be entitled to receive such salaries and allowances as may from time to time be determined by the Legislative Assembly by law and, until provision in that behalf is so made, such salaries and allowances as the Lieutenant Governor may, by order determine.

32.

Extent of legislative power.

(1)

Subject to the provisions of this Act, the Legislative Assembly may make laws for the whole or any part of the Union territory of Jammu and Kashmir with respect to any of the matters enumerated in the State List except the subjects mentioned at entries 1 and 2, namely "Public Order" and "Police" respectively or the Concurrent List in the Seventh Schedule to the Constitution of India in so far as any such matter is applicable in relation to the Union territories.

(2)

Nothing in sub-section (1) shall derogate from the powers conferred on Parliament by the Constitution to make laws with respect to any matter for the Union territory of Jammu and Kashmir or any part thereof.

33.

Exemption of property of the Union from taxation.

- The property of the Union shall, save in so far as Parliament may by law otherwise provide, be exempted from all taxes imposed by or under any law made by the Legislative Assembly or by or under any other law in force in the Union territory of Jammu and Kashmir:

Provided that nothing in this section shall, until Parliament by law otherwise provides, prevent any authority within the Union territory of Jammu and Kashmir from levying any tax on any property of the Union to which such property was immediately before the commencement of the Constitution liable or treated as liable, so long as that tax continues to be levied in that Union territory.

34.

Restrictions on laws passed by Legislative Assembly with respect to certain matters.

(1)

The provisions of article 286, article 287 and article 288 shall apply in relation to any law passed by the Legislative Assembly with respect to any of the matters referred to in those articles as they apply in relation to any law passed by the Legislature of a State with respect to those matters.

(2)

The provisions of article 304 shall, with the necessary modifications, apply in relation to any law passed by the Legislative Assembly with respect to any of the matters referred to in that article as they apply in relation to any law passed by the Legislature of a State with respect to those matters.

35.

Inconsistency between laws made by Parliament and laws made by Legislative Assembly.

- If any provision of a law made by the Legislative Assembly with respect to matters enumerated in the State List, in the

Seventh Schedule to the Constitution is repugnant to any provision of a law made by Parliament with respect to that matter, whether passed before or after the law made by the Legislative Assembly, or, if any provision of a law made by the Legislative Assembly with respect to any matter enumerated in the Concurrent List in the Seventh Schedule to the Constitution is repugnant to any provision of any earlier law, other than a law made by the Legislative Assembly, with respect to that matter, then, in either case, the law made by Parliament, or, as the case may be, such earlier law shall prevail and the law made by the Legislative Assembly of the Union territory shall, to the extent of the repugnancy, be void:

Provided that if such law made by the Legislative Assembly has been reserved for the consideration of the President and has received his assent, such law shall prevail in the Union territory of Jammu and Kashmir:

Provided further that nothing in this section shall prevent Parliament from enacting at any time any law with respect to the same matter including a law adding to, amending, varying or repealing the law so made by the Legislative Assembly.

36.

Special provisions as to financial Bills.

(1)

A Bill or amendment shall not be introduced into, or moved in, the Legislative Assembly except on the recommendation of the Lieutenant Governor, if such Bill or Amendment makes provision for any of the following matters, namely:-

(a)

the imposition, abolition, remission, alteration or regulation of any tax;

(b)

the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of the Union territory;

(c)

the appropriation of moneys out of the Consolidated Fund of the Union territory;

(d)

the declaring of any expenditure to be expenditure charged on the Consolidated Fund of the Union territory or the increasing of the amount of any such expenditure;

(e)

the receipt of money on account of the Consolidated Fund of the Union territory or the public account of the Union territory or the custody or issue of such money or the audit of the account of the Union territory:

Provided that no recommendation shall be required under this sub-section for the moving of an amendment making provision for the reduction or abolition of any tax.

(2)

A Bill or Amendment shall not be deemed to make provision for any of the matters aforesaid by reason only that it provides for the imposition of fines or other pecuniary penalties, or for the demand or payment of fees for licences or fees for services rendered, or by reason that it provides for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

(3)

A Bill which, if enacted and brought into operation, would involve expenditure from the Consolidated Fund of Union territory shall not be passed by the Legislative Assembly of the Union territory unless the Lieutenant Governor has recommended to the Assembly, the consideration of the Bill.

37.

Procedure as to lapsing of Bills.

(1)

A Bill pending in the Legislative Assembly shall not lapse by reason of the prorogation of the Legislative Assembly.

(2)

A Bill which is pending in the Legislative Assembly shall lapse on dissolution of the Legislative Assembly.

38.

Assent to Bills.

- When a Bill has been passed by the Legislative Assembly, it shall be presented to the Lieutenant Governor and the Lieutenant Governor shall declare either that he assents to the Bill or that he withholds assent therefrom or that he reserves the Bill for the consideration of the President:

Provided that the Lieutenant Governor may, as soon as possible after the presentation of the Bill to him for assent, return the Bill if it is not a Money Bill together with a message requesting that the Assembly will reconsider the Bill or any specified provisions thereof, and, in particular, will consider the desirability of introducing any such amendments as he may recommend in his message and, when a Bill is so returned, the Assembly will reconsider the Bill accordingly, and if the Bill is passed again with or without amendment and presented to the Lieutenant Governor for assent, the Lieutenant Governor shall declare either that he assents to the Bill or that he reserves the Bill for the consideration of the President: Provided further that the Lieutenant Governor shall not assent to, but shall reserve for the consideration of the President, any Bill which,-

(a)

in the opinion of the Lieutenant Governor would, if it became law, so derogate from the powers of the High Court as to endanger the position which that Court is, by the Constitution, designed to fill; or

(b)

relates to any of the matters specified in clause (1) of article 31A; or

(c)

the President may, by order, direct to be reserved for his consideration.

Explanation. - For the purposes of this section and section 39, a Bill shall be deemed to be a Money Bill if it contains only provisions dealing with all or any of the matters specified in sub-section (1) of section 36 or any matter incidental to any of those matters and, in either case, there is endorsed thereon the certificate of the Speaker of the Legislative Assembly signed by him that it is a Money Bill.

39.

Bills reserved for consideration.

- When a Bill is reserved by Lieutenant Governor for the consideration of the President, the President shall declare either that he assents to the Bill or that he withholds assent therefrom:

Provided that where the Bill is not a Money Bill, the President may direct the Lieutenant Governor to return the Bill to the Legislative Assembly together with such a message as is mentioned in the first proviso to section 38 and, when a Bill is so returned, the Assembly shall reconsider it accordingly within a period of six months from the date of receipt of such message and, if it is again passed by the Assembly with or without amendment, it shall be presented again to the President for his consideration.

40.

Requirements as to sanction and recommendations to be regarded as matters of procedure only.

- No Act of the Legislative Assembly and no provision in any such Act, shall be invalid by reason only that some previous sanction or recommendation required by this Act was not given, if assent to that Act was given by the Lieutenant Governor, or, on being reserved by the Lieutenant Governor for the consideration of the President, by the President.

41.

Annual financial statement.

(1)

The Lieutenant Governor shall in respect of every financial year cause to be laid before the Legislative Assembly of the Union territory of Jammu and Kashmir, a statement of the estimated receipts and expenditure of the Union territory for that year, in this Part referred to as the "annual financial statement".

(2)

The estimates of expenditure embodied in the annual financial statement shall show separately-

(a)

the sums required to meet expenditure described by this Act as expenditure charged upon the Consolidated Fund of the Union territory of Jammu and Kashmir, and

(b)

the sums required to meet other expenditure proposed to be made from the Consolidated Fund of the Union territory of Jammu and Kashmir; and shall distinguish expenditure on revenue account from other expenditure.

(3)

The following expenditure shall be expenditure charged on the Consolidated Fund of the Union territory of Jammu and Kashmir:-

- (a)
the emoluments and allowances of the Lieutenant Governor and other expenditure relating to his office;
- (b)
the charges payable in respect of loans advanced to the Union territory of Jammu and Kashmir from the Consolidated Fund of India including interest, sinking fund charges and redemption charges, and other expenditure connected therewith;
- (c)
the salaries and allowances of the Speaker and the Deputy Speaker of the Legislative Assembly;
- (d)
expenditure in respect of the salaries and allowances of Judges of High Court of Jammu and Kashmir;
- (e)
any sums required to satisfy any judgment, decree or award of any court or arbitral tribunal;
- (f)
expenditure incurred by the Lieutenant Governor in the discharge of his special responsibility;
- (g)
any other expenditure declared by the Constitution or by law made by Parliament or by the Legislative Assembly of the Union territory of Jammu and Kashmir to be so charged.

42.

Procedure in Legislative Assembly with respect to estimates.

- (1)
So much of the estimates as relates to expenditure charged upon the Consolidated Fund of Union territory of Jammu and Kashmir shall not be submitted to the vote of the Legislative Assembly, but nothing in this sub-section shall be construed as preventing the discussion in the Legislative Assembly of any of those estimates.
- (2)
So much of the said estimates as relates to other expenditure shall be submitted in the form of demands for grants to the Legislative Assembly, and the Legislative Assembly shall have power to assent, or to refuse to assent, to any demand, or to assent to any demand subject to a reduction of the amount specified therein.
- (3)
No demand for a grant shall be made except on the recommendation of the Lieutenant Governor.

43.

Appropriation Bills.

- (1)
As soon as may be after the grants under section 42 have been made by the Legislative Assembly, there shall be introduced a Bill to provide for the appropriation out of the Consolidated Fund of the Union territory of all moneys required to meet-
 - (a)
the grants so made by the Legislative Assembly, and
 - (b)
the expenditure charged on the Consolidated Fund of the Union territory of Jammu and Kashmir but not exceeding in any case the amount shown in the statement previously laid before the Assembly.
- (2)
No amendment shall be proposed to any such Bill in the Legislative Assembly which will have the effect of varying the amount or altering the destination of any grant so made or of varying the amount of any expenditure charged on the Consolidated Fund of the Union territory of Jammu and Kashmir and the decision of the person presiding as to whether an amendment is inadmissible under this sub-section shall be final.
- (3)
Subject to the other provisions of this Act, no money shall be withdrawn from the Consolidated Fund of the Union territory except under appropriation made by law passed in accordance with the provisions of this section.

44.

Supplementary, additional or excess grants.

- (1)

The Lieutenant Governor shall-

(a)

if the amount authorised by any law made in accordance with the provisions of section 43 to be expended for a particular service for the current financial year is found to be insufficient for the purposes of that year or when a need has arisen during the current financial year for supplementary or additional expenditure upon some new service not contemplated in the annual financial statement for that year, or

(b)

if any money has been spent on any service during a financial year in excess of the amount granted for that service and for that year, cause to be laid before the Legislative Assembly, another statement showing the estimated amount of that expenditure or cause to be presented to the Legislative Assembly with such previous approval a demand for such excess, as the case may be.

(2)

The provisions of sections 41, 42 and 43 shall have effect in relation to any such statement and expenditure or demand and also to any law to be made authorising the appropriation of moneys out of the Consolidated Fund of the Union territory of Jammu and Kashmir to meet such expenditure or the grant in respect of such demand as they have effect in relation to the annual financial statement and the expenditure mentioned therein or to a demand for a grant and the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund of the Union territory of Jammu and Kashmir to meet such expenditure or grant.

45.

Votes on account.

(1)

Notwithstanding anything in the foregoing provisions of this Part, the Legislative Assembly shall have power to make any grant in advance in respect of the estimated expenditure for a part of any financial year pending the completion of the procedure prescribed in section 42 for the voting of such grant and the passing of the law in accordance with the provisions of section 43 in relation to that expenditure and the Legislative Assembly shall have power to authorise by law the withdrawal of moneys from the Consolidated Fund of the Union territory of Jammu and Kashmir for the purposes for which the said grant is made.

(2)

The provisions of sections 42 and 43 shall have effect in relation to the making of any grant under sub-section (1) or to any law to be made under that sub-section as they have effect in relation to the making of a grant with regard to any expenditure mentioned in the annual financial statement and the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund of the Union territory of Jammu and Kashmir to meet such expenditure.

46.

Rules of procedure.

(1)

The Legislative Assembly may make rules for regulating, subject to the provisions of this Act, its procedure and the conduct of its business:

Provided that the Lieutenant Governor shall, after consultation with the Speaker of the Legislative Assembly, make rules-

(a)

for securing the timely completion of financial business;

(b)

for regulating the procedure of, and the conduct of business in, the Legislative Assembly in relation to any financial matter or to any Bill for the appropriation of moneys out of the Consolidated Fund of the Union territory of Jammu and Kashmir;

(c)

for prohibiting the discussion of, or the asking of questions on, any matter which affects the discharge of the functions of the Lieutenant Governor in so far as he is required by this Act to act in his discretion.

(2)

Until rules are made under sub-section (1), the rules of procedure and standing orders in force immediately before the commencement of this Act, with respect to the Legislative Assembly of the existing State of Jammu and Kashmir shall

have effect in relation to the Legislative Assembly of the Union territory of Jammu and Kashmir subject to such modifications and adaptations as may be made therein by the Speaker of Legislative Assembly.

47.

Official language or languages of Union territory of Jammu and Kashmir and language or languages to be used in Legislative Assembly thereof.

(1)

The Legislative Assembly may by law adopt any one or more of the languages in use in the Union territory of Jammu and Kashmir or Hindi as the official language or languages to be used for all or any of the official purposes of the Union territory of Jammu and Kashmir.

(2)

The business in the Legislative Assembly of the Union territory of Jammu and Kashmir shall be transacted in the official language or languages of the Union territory of Jammu and Kashmir or in Hindi or in English:

Provided that the Speaker of the Legislative Assembly or person acting as such, as the case may be, may permit any member who cannot adequately express himself in any of the languages aforesaid to address the Legislative Assembly in his mothertongue.

48.

Language to be used for Acts, Bills, etc.

- Notwithstanding anything contained in section 47, until Parliament by law otherwise provides, the authoritative texts-

(a)

of all Bills to be introduced or amendments thereto to be moved in the Legislative Assembly,

(b)

of all Acts passed by the Legislative Assembly, and

(c)

of all orders, rules, regulations and bye-laws issued under any law made by the Legislative Assembly, shall be in the English language:

Provided that where the Legislative Assembly has prescribed any language other than the English language for use in Bills introduced in, or Acts passed by, the Legislative Assembly or in any order, rule, regulation or bye-law issued under any law made by the Legislative Assembly of the Union territory of Jammu and Kashmir, a translation of the same in the English language published under the authority of the Lieutenant Governor in the Official Gazette shall be deemed to be the authoritative text thereof in the English language.

49.

Restriction on discussion in the Legislative Assembly.

- No discussion shall take place in the Legislative Assembly with respect to the conduct of any judge of the Supreme Court or of a High Court in the discharge of his duties.

50.

Courts not to inquire into proceedings of Legislative Assembly.

(1)

The validity of any proceedings in the Legislative Assembly shall not be called in question on the ground of any alleged irregularity of procedure.

(2)

No officer or member of the Legislative Assembly in whom powers are vested by or under this Act for regulating procedure or the conduct of business, or for maintaining order in the Legislative Assembly shall be subject to the jurisdiction of any court in respect of the exercise by him of those powers.

51.

Secretariat of the Legislative Assembly.

(1)

The Legislative Assembly shall have a separate secretariat staff.

(2)

The Legislative Assembly may by law regulate the recruitment, and the conditions of service of persons appointed, to the secretarial staff of the Legislative Assembly.

(3)

Until provision is made by the Legislative Assembly under sub-section (2), the Lieutenant Governor may, after consultation with the Speaker of the Legislative Assembly make rules regulating the recruitment, and the conditions of service of persons appointed, to the secretarial staff of the Assembly and any rules so made shall have effect subject to the provisions of any law made under the said sub-section.

52.

Power of Lieutenant Governor to promulgate Ordinances during recess of Legislative Assembly.

(1)

If at any time, except when the Legislative Assembly is in session, the Lieutenant Governor thereof is satisfied that circumstances exist which render it necessary for him to take immediate action, he may promulgate such Ordinances as the circumstances appear to him to require:

Provided that the power of making an Ordinance under this section shall extend only to those matters with respect to which the Legislative Assembly has power to make laws.

(2)

An Ordinance promulgated under this section shall have the same force and effect as an Act of the Legislative Assembly assented by the Lieutenant Governor but every such Ordinance-

(a)

Shall be laid before the Legislative Assembly and shall cease to operate at the expiration of six weeks from the re-assembly of the Legislative Assembly, or if before the expiration of that period a resolution disapproving it is passed by the Legislative Assembly; and

(b)

May be withdrawn at any time by the Lieutenant Governor. Council of Ministers for the Union territory of Jammu and Kashmir

53.

Council of Ministers.

(1)

There shall be a Council of Ministers consisting of not more than ten percent of the total number of members in the Legislative Assembly, with the Chief Minister at the head to aid and advise the Lieutenant Governor in the exercise of his functions in relation to matters with respect to which the Legislative Assembly has power to make laws except in so far as he is required by or under this Act to act in his discretion or by or under any law to exercise any judicial or quasi-judicial functions.

(2)

The Lieutenant Governor shall, in the exercise of his functions, act in his discretion in a matter:

(i)

which falls outside the purview of the powers conferred on the Legislative Assembly; or

(ii)

in which he is required by or under any law to act in his discretion or to exercise any judicial functions.

(iii)

related to All India Services and Anti Corruption Bureau:

Provided that if any question arises whether any matter is or is not a matter as respects which the Lieutenant Governor is by or under this Act required to act in his discretion, the decision of the Lieutenant Governor in his discretion shall be final, and the validity of anything done by the Lieutenant Governor shall not be called in question on the ground that he ought or ought not to have acted in his discretion.

(3)

The question whether any, and if so what, advice was tendered by Ministers to the Lieutenant Governor shall not be inquired into in any court.

54.

Other provisions as to Ministers.

(1)

The Chief Minister shall be appointed by the Lieutenant Governor and the other Ministers shall be appointed by the Lieutenant Governor on the advice of the Chief Minister.

(2)

The Ministers shall hold office during the pleasure of the Lieutenant Governor.

(3)

The Council of Ministers shall be collectively responsible to the Legislative Assembly.

(4)

Before a Minister enters upon his office, the Lieutenant Governor shall administer to him the oaths of office and of secrecy according to the forms set out for the purpose in the Fourth Schedule to this Act.

(5)

A Minister who for any period of six consecutive months is not a member of the Legislative Assembly shall at the expiration of that period cease to be a Minister.

(6)

The salaries and allowances of Ministers shall be such as the Legislative Assembly may from time to time by law determine, and until the Legislative Assembly so determines, shall be determined by the Lieutenant Governor.

55.

Conduct of business.

(1)

The Lieutenant Governor shall make rules on the advice of the Council of Ministers-

(a)

for the allocation of business to the Ministers; and

(b)

for the more convenient transaction of business with the Ministers including the procedure to be adopted in case of a difference of opinion between the Lieutenant Governor and the Council of Ministers or a Minister.

(2)

Save as otherwise provided in this Act, all executive action of the Lieutenant Governor, whether taken on the advice of his Ministers or otherwise, shall be expressed to be taken in the name of the Lieutenant Governor.

(3)

Orders and other instruments made and executed in the name of the Lieutenant Governor, shall be authenticated in such manner as may be specified in rules to be made by the Lieutenant Governor on the advice of council of ministers, and the validity of an order or instrument which is so authenticated shall not be called in question on the ground that it is not an order or instrument made or executed by the Lieutenant Governor.

56.

Duties of Chief Minister as respects the furnishing of information to the Lieutenant Governor, etc.

- It shall be the duty of the Chief Minister-

(a)

to communicate to the Lieutenant Governor all decisions of the Council of Ministers relating to the administration of the affairs of the Union territory and proposals for legislation;

(b)

to furnish such information relating to the administration of the affairs of the Union territory and proposals for legislation as Lieutenant Governor may call for.

Legislative Council

57.

Abolition of Legislative Council of the State of Jammu and Kashmir.

(1)

Notwithstanding anything to the contrary contained in any law, document, judgment, ordinance, rule, regulation or notification, on and from the appointed day, the Legislative Council of the existing State of Jammu and Kashmir shall stand abolished.

(2)

On the abolition of the Legislative Council, every member thereof shall cease to be such member.

(3)

All Bills pending in the Legislative Council immediately before the appointed day shall lapse on the abolition of the Council.

Part IV ? Administration of Union Territory of Ladakh

58.

Appointment of Lieutenant Governor of Union territory of Ladakh.

(1)

The Union territory of Ladakh will be administered by the President acting, to such extent as he thinks fit, through a Lieutenant Governor to be appointed by him under article 239.

(2)

The President may make regulations for the peace, progress and good government of the Union territory of Ladakh under article 240 of the Constitution of India.

(3)

Any regulation so made may repeal or amend any Act made by Parliament or any other law which is for the time being applicable to the Union territory of Ladakh and, when promulgated by the President, shall have the same force and effect as an Act of Parliament which applies to the Union territory of Ladakh.

(4)

The Lieutenant Governor shall be assisted by advisor(s) to be appointed by the Central Government.

Part V ? Delimitation of Constituencies

59.

Definitions.

- In this Part, unless the context otherwise requires,-

(a)

"associate member" means a member associated with the Delimitation Commission under section 60;

(b)

"Delimitation Commission" means the Delimitation Commission to be constituted under section 3 of the Delimitation Act, 2002 (33 of 2002); and thereafter by any law made by the Parliament.

(c)

"Election Commission" means the Election Commission appointed by the President under article 324 of the Constitution of India;

(d)

"latest census figures" mean the census figures ascertained at the latest census of which the finally published figures are available;

(e)

"Parliamentary Constituency" means a constituency provided by law for the purpose of elections to the House of the People from Union territory of Jammu and Kashmir and Union territory of Ladakh.

(f)

"Assembly Constituency" means a constituency provided by law for the purpose of elections to the Legislative Assembly.

60.

Delimitation of constituencies.

(1)

Without prejudice to sub-sections (3) of section 14 of this Act, the number of seats in the Legislative Assembly of Union territory of Jammu and Kashmir shall be increased from 107 to 114, and delimitation of the constituencies may be determined by the Election Commission in the manner hereinafter provided-

(a)

the number of seats to be reserved for the Scheduled Castes and the Scheduled Tribes in the Legislative Assembly, having regard to the relevant provisions of the Constitution;

(b)

the assembly constituencies into which the Union territory shall be divided, the extent of each of such constituencies and in which of them seats shall be reserved for the Scheduled Castes or for the Scheduled Tribes; and

(c)

the adjustments in the boundaries and description of the extent of the parliamentary constituencies in each Union territory that may be necessary or expedient.

(2)

In determining the matters referred to in clauses (b) and (c) of sub-section (1), the Election Commission shall have

regard to the following provisions, namely:-

(a)

all the constituencies shall be single-member constituencies;

(b)

all constituencies shall, as far as practicable, be geographically compact areas, and in delimiting them, regard shall be had to physical features, existing boundaries of administrative units, facilities of communication and conveniences to the public; and

(c)

constituencies in which seats are reserved for the Scheduled Castes and the Scheduled Tribes shall, as far as practicable, be located in areas where the proportion of their population to the total population is the largest.

(3)

The Election Commission shall, for the purpose of assisting it in the performance of its functions under sub-section (1), associate with itself as associate members, four persons as the Central Government may by order specify, being persons who are the members of the Legislative Assembly of the Union territory of Jammu and Kashmir or four members of the House of the People representing the Union territory of Jammu and Kashmir:

Provided that none of the associate members shall have a right to vote or to sign any decision of the Election Commission.

(4)

If, owing to death or resignation, the office of an associate member falls vacant, it shall be filled as far as practicable, in accordance with the provisions of sub-section (3).

(5)

The Election Commission shall-

(a)

publish its proposals for the delimitation of constituencies together with the dissenting proposals, if any, of any associate member who desires publication thereof in the Official Gazette and in such other manner as the Commission may consider fit, together with a notice inviting objections and suggestions in relation to the proposals and specifying a date on or after which the proposals will be further considered by it;

(b)

consider all objections and suggestions which may have been received by it before the date so specified; and

(c)

after considering all objections and suggestions which may have been received by it before the date so specified, determine by one or more orders the delimitation of constituencies and cause such order or orders to be published in the Official Gazette, and there upon such publication, the order or orders shall have the full force of law and shall not be called in question in any court.

(6)

As soon as may be after such publication, every such order relating to assembly constituencies shall be laid before the Legislative Assembly of the Union territory of Jammu and Kashmir.

61.

Power of Election Commission to maintain Delimitation Orders up-to date.

(1)

The Election Commission may by notification in the Official Gazette,-

(a)

correct any printing mistakes in any order made under section 60 or any error arising therein from inadvertent slip or omission; and

(b)

where the boundaries or name of any territorial division mentioned in any such order or orders is or are altered, make such amendments as appear to it to be necessary or expedient for bringing such order up-to-date.

(2)

Every notification under this section relating to an assembly constituency shall be laid, as soon as may be after it is issued, before the Legislative Assembly.

62.

Special provision as to readjustment of Parliamentary and Assembly Constituencies on the basis of 2011 census.

(1)

On and from the appointed day, notwithstanding the publication of orders under sub-section (1) of section 10 of the Delimitation Act, 2002 (33 of 2002) or anything contained in sub-section (2) or sub-section (4) of the said section, the Delimitation Act, 2002 (33 of 2002) shall be deemed to have been amended as provided below:

(a)

in section 2, in clause (f), the words "but does not include the State of Jammu and Kashmir" shall be omitted; and

(b)

for the purpose of delimitation of Assembly and Parliamentary Constituencies, the words and figures "census held in the year 2001", wherever occurring, shall be construed as words and figures "census held in the year 2011".

(2)

Readjustment of the constituencies as provided under section 60 in the successor Union territory of Jammu and Kashmir into Assembly Constituencies, shall be carried by the Delimitation Commission, to be constituted under the Delimitation Act, 2002 as amended by this Act, and shall take effect from such date as the Central Government may, by order, publish in the Official Gazette, specify.

(3)

Readjustment of the constituencies as provided under section 11 in the successor Union territory of Jammu and Kashmir into Parliamentary Constituencies, shall be carried by the Delimitation Commission, to be constituted under the Delimitation Act, 2002 as amended by this Act, and shall take effect from such date as the Central Government may, by order, publish in the Official Gazette, specify.

63.

Special provisions as to readjustment of Assembly and Parliamentary Constituencies.

- Notwithstanding anything contained in sections 59 to 61, until the relevant figures for the first census taken after the year 2026 have been published, it shall not be necessary to readjust the division of successor Union territory of Jammu and Kashmir into Assembly and Parliamentary Constituencies and any reference to the "latest census figures" in this Part shall be construed as a reference to the 2011 census figures.

64.

Procedure as to delimitation.

- The procedure as provided in the law made by Parliament, shall apply, in relation to the delimitation of Parliamentary and Assembly constituencies under this Part as they apply in relation to the delimitation of Parliamentary and Assembly constituencies under that law.

Part VI ? Scheduled Castes and Scheduled Tribes

65.

Applicability of Scheduled Castes Order.

- On and from the appointed day, the Constitution Jammu and Kashmir (Scheduled Castes) Order, 1956, shall stand applied to the Union territory of Jammu and Kashmir and Union territory of Ladakh.

66.

Applicability of Scheduled Tribes Order.

- On and from the appointed day, the Constitution Jammu and Kashmir (Scheduled Tribes) Order, 1989, shall stand applied to the Union territory of Jammu and Kashmir and Union territory of Ladakh.

Part VII ? Miscellaneous and Transitional Provisions

67.

Consolidated Fund of the Union territory of Jammu and Kashmir.

(1)

On and from the appointed day, all revenues received in the Union territory of Jammu and Kashmir by the Government of India or the Lieutenant Governor of the Union territory of Jammu and Kashmir in relation to any matter with respect to which the Legislative Assembly of the Union territory of Jammu and Kashmir has power to make laws, and all grants made and all loans advanced to the Union territory of Jammu and Kashmir from the Consolidated Fund of India and all loans raised by the Government of India or the Lieutenant Governor of the Union territory of Jammu and Kashmir upon the security of the Consolidated Fund of the Union territory of Jammu and Kashmir and all moneys received by the Union territory of Jammu and Kashmir in repayment of loans shall form one Consolidated Fund to be entitled "the

Consolidated Fund of the Union territory of Jammu and Kashmir".

(2)

No moneys out of such Consolidated Fund shall be appropriated except in accordance with, and for the purposes and in the manner provided in, this Act.

(3)

The custody of such Consolidated Fund, the payment of moneys into such Funds, the withdrawal of moneys therefrom and all other matters connected with or ancillary to those matters shall be regulated by rules made by the Lieutenant Governor.

68.

Public Account of the Union territory of Jammu and Kashmir and moneys credited to it.

(1)

On and from the appointed day, all other public moneys received by or on behalf of the Lieutenant Governor shall be credited to a Public Account entitled "the Public Account of the Union territory of Jammu and Kashmir".

(2)

The custody of public moneys, other than those credited to the Consolidated Fund of the Union territory or the Contingency Fund of the Union territory of Jammu and Kashmir, received by or on behalf of the Lieutenant Governor, their payment into the Public Accounts of the Union territory of Jammu and Kashmir and the withdrawal of moneys from such account and all other matters connected with or ancillary to the aforesaid matters shall be regulated by rules made by the Lieutenant Governor on the advice of Council of Ministers.

69.

Contingency Fund of Union territory of Jammu and Kashmir.

(1)

There shall be established a Contingency Fund in the nature of an imprest to be entitled "the Contingency Fund of the Union territory of Jammu and Kashmir", into which shall be paid from and out of the Consolidated Fund of the Union territory of Jammu and Kashmir such sums as may, from time to time, be determined by law made by the Legislative Assembly of the Union territory of Jammu and Kashmir; and the said Fund shall be held by the Lieutenant Governor to enable advances to be made by him out of such Fund.

(2)

No advances shall be made out of the Contingency Fund of the Union territory of Jammu and Kashmir except for the purposes of meeting unforeseen expenditure pending authorisation of such expenditure by the Legislative Assembly under appropriations made by law.

(3)

The Lieutenant Governor on the advice of the Council of Ministers may make rules regulating all matters connected with or ancillary to the custody of, the payment of moneys into, and the withdrawal of moneys from, the Contingency Fund of the Union territory of Jammu and Kashmir.

70.

Borrowing upon the security of Consolidated Fund of Union territory of Jammu and Kashmir.

(1)

The executive power of the Union territory extends to borrowing upon the security of the Consolidated Fund of the Union territory of Jammu and Kashmir within such limits, if any, as may, from time to time, be fixed by Legislative assembly by law and to the giving of guarantees within such limits, if any, as may be so fixed.

(2)

Any sums required for the purpose of invoking a guarantee shall be charged on the Consolidated Fund of the Union territory of Jammu and Kashmir.

71.

Form of accounts of the Union territory of Jammu and Kashmir.

- The accounts of the Union territory of Jammu and Kashmir shall be kept in such form as the Lieutenant Governor may, after obtaining advice of the Comptroller and Auditor- General of India, prescribe by rules.

72.

Audit reports.

- The reports of the Comptroller and Auditor-General of India relating to the accounts of Union territory of Jammu and

Kashmir for any period subsequent to the date referred to in sub-section (1) of section 67 shall be submitted to the Lieutenant Governor who shall cause them to be laid before the Legislative Assembly.

73.

Provision in case of failure of constitutional machinery.

- If the President, on receipt of a report from the Lieutenant Governor of Union territory of Jammu and Kashmir, or otherwise, is satisfied,-

(a)

that a situation has arisen in which the administration of the Union territory of Jammu and Kashmir cannot be carried on in accordance with the provisions of this Act, or

(b)

that for the proper administration of Union territory of Jammu and Kashmir it is necessary or expedient so to do, the President may, by order, suspend the operation of all or any of the provisions of this Act for such period as he thinks fit and make such incidental and consequential provisions as may appear to him to be necessary or expedient for administering the Union territory of Jammu and Kashmir in accordance with the provisions of this Act.

74.

Authorisation of expenditure by President.

- Where the Legislative Assembly is dissolved, or its functioning as such Assembly remains suspended, on account of an order under section 73, it shall be competent for the President to authorize, when the House of the People is not in session, expenditure from the Consolidated Fund of the Union territory of Jammu and Kashmir pending the sanction of such expenditure by Parliament.

Part VIII ? High Court

75.

High Court of Jammu and Kashmir to be common High Court.

(1)

On and from the appointed day,-

(a)

the High Court of Jammu and Kashmir shall be the common High Court for the Union territory of Jammu and Kashmir and Union territory of Ladakh;

(b)

the Judges of the High Court of Jammu and Kashmir for the existing State of Jammu and Kashmir holding office immediately before the appointed day shall become on that day the Judges of the common High Court.

(2)

The expenditure in respect of salaries and allowances of the Judges of the common High Court shall be allocated amongst the Union territory of Jammu and Kashmir and Union territory of Ladakh on the basis of population ratio.

76.

Special provision relating to Bar Council and advocates.

(1)

On and from the date referred to in sub-section (1) of section 75, in the Advocates Act, 1961, (25 of 1961) in section 3, in sub-section (1),-

(a)

in clause (a), the words "Jammu and Kashmir" shall be deleted.

(b)

after clause (f), the following clause shall be inserted, namely-

- (g) - for the Union territory of Jammu and Kashmir and Union territory of Ladakh, to be known as the Bar Council of Jammu and Kashmir; and Ladakh.

(2)

Any person who immediately before the date referred to in sub-section (1) of section 75 is an advocate on the roll of the Bar Council of the existing State of Jammu and Kashmir and practising as an advocate in the High Court of Jammu and Kashmir, may continue to be members of the "Bar council of Jammu and Kashmir; and Ladakh", notwithstanding anything contained in the Advocates Act, 1961 and the rules made thereunder.

(3)

The persons other than the advocates who are entitled immediately before the date referred to in sub-section (1) of section 75, on and after that date, be recognised as such persons entitled also to practise in the common High Court of Jammu and Kashmir or any subordinate court thereof, as the case may be.

(4)

The right of audience in the common High Court of Jammu and Kashmir shall be regulated in accordance with the like principles as immediately before the date referred to in sub-section (1) of section 75, are in force with respect to the right of audience in the High Court of Jammu and Kashmir.

77.

Practice and procedure in common High Court of Jammu and Kashmir.

- Subject to the provisions of this Part, the law in force immediately before the date referred to in sub-section (1) of section 75 with respect to practice and procedure in the High Court of Jammu and Kashmir shall, with the necessary modifications, apply in relation to the common High Court of Jammu and Kashmir and accordingly, the common High Court of Jammu and Kashmir shall have all such powers to make rules and orders with respect to practice and procedure as are immediately before that date exercisable by the common High Court of Jammu and Kashmir:

Provided that any rules or orders which are in force immediately before the date referred to in sub-section (1) of section 75 with respect to practice and procedure in the High Court of Jammu and Kashmir shall, until varied or revoked by rules or orders made by the common High Court of Jammu and Kashmir, apply with the necessary modifications in relation to practice and procedure in the common High Court of Jammu and Kashmir as if made by that Court.

78.

Savings.

- Nothing in this Part shall affect the application to the common High Court of Jammu and Kashmir of any provisions of the Constitution, and this Part shall have effect subject to any provision that may be made on or after the date referred to in sub-section (1) of section 75 with respect to the common High Court of Jammu and Kashmir by any Legislature or other authority having power to make such provision.

Part IX ? Advocate-General of Union Territory of Jammu and Kashmir

79.

Advocate General for Union territory of Jammu and Kashmir.

(1)

The Lieutenant Governor shall appoint a person who is qualified to be appointed a Judge of the High Court, to be Advocate-General for the Union territory of Jammu and Kashmir.

(2)

It shall be the duty of such Advocate - General to give advice to the Government of such Union territory upon such legal matters and to perform such other duties of a legal character, as may from time to time be referred or assigned to him by the said Government, and to discharge the functions conferred on him by or under the Constitution or any other law for the time being in force.

(3)

In the performance of his duties, the Advocate-General shall have the right of audience in all courts in the Union territory of Jammu and Kashmir.

(4)

The Advocate-General shall hold office during the pleasure of the Lieutenant Governor and receive such remuneration as the Lieutenant Governor may determine.

Part X ? Authorisation of Expenditure and Distribution of Revenues

80.

Authorisation of expenditure of Union territory of Jammu and Kashmir.

- The Governor of existing State of Jammu and Kashmir may, at any time before the appointed day, authorise such expenditure from the Consolidated Fund of the Union territory of Jammu and Kashmir as he deems necessary for any period not more than six months beginning with the appointed day pending the sanction of such expenditure by the Legislative Assembly of the Union territory of Jammu and Kashmir:

Provided that the Lieutenant Governor of Union territory of Jammu and Kashmir may, after the appointed day, authorise such further expenditure as he deems necessary from the Consolidated Fund of the Union territory of Jammu and Kashmir for any period not extending beyond the said period of six months.

81.

Authorisation of expenditure of Union territory of Ladakh.

- The Governor of existing State of Jammu and Kashmir may, at any time before the appointed day, authorise such expenditure from the Consolidated Fund of Union territory of Jammu and Kashmir as he deems necessary for any period not more than six months beginning with the appointed day pending the sanction of such expenditure by the Parliament:

Provided that the President may, after the appointed day, authorise such further expenditure as he deems necessary from the Consolidated Fund of India for any period not extending beyond the said period of six months.

82.

Reports relating to accounts of Jammu and Kashmir State.

(1)

The reports of the Comptroller and Auditor-General of India referred to in clause (2) of article 151 relating to the accounts of the existing State of Jammu and Kashmir in respect of any period prior to the appointed day shall be submitted to the Lieutenant Governors of the successor Union territory of Jammu and Kashmir, and Union territory of Ladakh.

(2)

The Lieutenant Governor of Jammu and Kashmir, thereafter shall cause the reports to be laid before the Legislature of the Union territory of Jammu and Kashmir.

(3)

The Lieutenant Governor of Jammu and Kashmir may by order-

(a)

declare any expenditure incurred out of the Consolidated Fund of Jammu and Kashmir on any service in respect of any period prior to the appointed day during the financial year or in respect of any earlier financial year in excess of the amount granted for that service and for that year as disclosed in the reports referred to in sub-section (1) to have been duly authorised; and

(b)

provide for any action to be taken on any matter arising out of the said reports.

83.

Distribution of revenue.

(1)

The award made by the Fourteenth Finance Commission to the existing State of Jammu and Kashmir shall be apportioned between the successor Union territory of Jammu and Kashmir; and Union territory of Ladakh by the Central Government on the basis of population ratio and other parameters:

Provided that on the appointed day, the President shall make a reference to the Union Territories Finance Commission to take into account the resources available to the successor Union territory of Ladakh and make separate award for the successor Union territory of Ladakh:

Provided Further that on the appointed day, the President shall make a reference to the Fifteenth Finance Commission to include Union territory of Jammu and Kashmir in its Terms of Reference and make award for the successor Union territory of Jammu and Kashmir.

(2)

Notwithstanding anything in sub-section (1), the Central Government may, having regard to the resources available to the successor Union territory of Ladakh make appropriate grants and also ensure that adequate benefits and incentives in the form of special development package are given to the backward areas of this region.

Part XI ? Apportionment of Assets and Liabilities

84.

Application of this Part.

(1)

The provisions of this Part shall apply in relation to the apportionment of the assets and liabilities of the existing State of Jammu and Kashmir immediately before the appointed day, between the successor Union territory of Jammu and Kashmir and successor Union territory of Ladakh.

(2)

The apportionment of the assets and liabilities of the existing State of Jammu and Kashmir shall be subject to the recommendations of a committee constituted by the Central Government.

(3)

The process of apportionment shall be completed within a period of twelve months from the appointed day.

Part XII ? Provisions as to Certain Corporations and any Other Matters

85.

Advisory Committee(s).

(1)

The Central Government may by order, establish one or more Advisory Committees within a period of 90 days from the appointed day, for the purposes of :

(a)

apportionment of assets, rights and liabilities of the companies and corporations constituted for the existing State of Jammu and Kashmir between Union territory of Jammu and Kashmir and Union territory of Ladakh;

(b)

issues relating to Continuance of arrangements in regard to generation and supply of electric power and supply of water;

(c)

issues related to Jammu and Kashmir State Financial Corporation;

(d)

issues related to Companies constituted for the existing state of Jammu and Kashmir regarding the division of the interests and shares and reconstitution of Board of Directors;

(e)

issues related to facilities in certain State Institutions; and

(f)

issues related to any other matters not covered under this section.

(2)

The committees so appointed under sub-section (1) of this section, shall submit their reports within six months to the Lieutenant Governor of Union territory of Jammu and Kashmir, who shall act on the recommendations of such committees within a period of 30 days from the date of receiving such reports.

86.

Temporary provisions as to continuance of certain existing road transport permits.

(1)

Notwithstanding anything contained in section 88 of the Motor Vehicles Act, 1988, (59 of 1988) a permit granted by the State Transport Authority of the existing State of Jammu and Kashmir or any Regional Transport Authority in that State shall, if such permit was, immediately before the appointed day, valid and effective in any area in the transferred territory, be deemed to continue to be valid and effective in that area after that day till its period of validity subject to the provisions of that Act as for the time being in force in that area; and it shall not be necessary for any such permit to be countersigned by the Transport Authority of any of Union territory or any Regional Transport Authority therein for the purpose of validating it for use in such area:

Provided that the Lieutenant Governor may add to amend or vary the conditions attached to the permit by the Authority by which the permit was granted.

(2)

No tolls, entrance fees or other charges of a like nature shall be levied after the appointed day in respect of any transport vehicle for its operations in any of the successor Union Territories under any such permit, if such vehicle was, immediately before that day, exempt from the payment of any such toll, entrance fees or other charges for its operations in the transferred territory:

Provided that the Central Government may, after consultation with the Government of Union territory of Jammu and Kashmir or the administration of Union territory of Ladakh, as the case may be, authorise the levy of any such toll, entrance fees or other charges, as the case may be:

Provided further that the provisions of this sub-section shall not be applicable where any such tolls, entrance fees or other charges of a like nature are leviable for the use of any road or bridge which is constructed or developed for commercial purpose by the State Government, an undertaking of the State Government, a joint undertaking in which the

State Government is a shareholder or the private sector.

87.

Special provision as to income-tax.

- Where the assets, rights and liabilities of any body corporate carrying on business are, under the provisions of this Part, transferred to any other bodies corporate which after the transfer carry on the same business, the losses or profits or gains sustained by the body corporate first-mentioned which, but for such transfer, would have been allowed to be carried forward and set off in accordance with the provisions of Chapter VI of the Income-tax Act, 1961, (43 of 1961) shall be apportioned amongst the transferee bodies corporate in accordance with the rules to be made by the Central Government in this behalf and, upon such apportionment, the share of loss allotted to each transferee body corporate shall be dealt with in accordance with the provisions of Chapter VI of the said Act, as if the transferee body corporate had itself sustained such loss in a business carried on by it in the years in which those losses were sustained.

Part XIII ? Provisions as to Services

88.

Provisions relating to All-India Services.

(1)

In this section, the expression "State cadre"-

(a)

in relation to the Indian Administrative Service, has the same meaning assigned to it in the Indian Administrative Service (Cadre) Rules, 1954;

(b)

in relation to the Indian Police Service, has the same meaning assigned to it in the Indian Police Service (Cadre) Rules, 1954; and

(c)

in relation to the Indian Forest Service, has the same meaning assigned to it in the Indian Forest Service (Cadre) Rules, 1966.

(2)

The members of the Indian Administrative Service, Indian Police Service and Indian Forest Service for the existing cadre of Jammu and Kashmir, shall be borne and become part of the Arunachal Pradesh, Goa, Mizoram and Union territories cadre, and all future allocations of All India Services Officers for the Union territory of Jammu and Kashmir and Union territory of Ladakh shall be made to Arunachal Pradesh, Goa, Mizoram and Union territories cadre for which necessary modifications may be made in corresponding cadre allocation rules by the Central Government.

(3)

The officers so borne or allocated on Arunachal Pradesh, Goa, Mizoram and Union territories cadre shall function in accordance with the rules framed by the Central Government.

(4)

The members of each of the said services, currently borne on the Jammu and Kashmir cadre immediately before the appointed day shall be finally allocated between the successor Union territory of Jammu and Kashmir and Union territory of Ladakh, in such manner and with effect from such date or dates as the Central Government may, by order, specify on the recommendation of Lieutenant Governors of Union territory of Jammu and Kashmir; and Union territory of Ladakh.

(5)

The Officers so allocated to both the Union Territories shall function within these Union Territories, in accordance with the rules framed by the Central Government.

(6)

In future, the All India Service officers to be posted to Union territory of Jammu and Kashmir or Union territory of Ladakh, as the case may be, shall be borne on the Arunachal Goa Mizoram Union Territory cadre, and necessary modifications in corresponding cadre allocations rules may be made accordingly, by the Central Government.

89.

Provisions relating to other services.

(1)

Every person who immediately before the appointed day is serving on substantive basis in connection with the affairs of the existing State of Jammu and Kashmir shall, on and from that day provisionally continue to serve in connection with

the affairs of the Union territory of Jammu and Kashmir and Union territory of Ladakh, by general or special order of the Lieutenant Governor of Union territory of Jammu and Kashmir:

Provided that every direction under this sub-section issued after the expiry of a period of one year from the appointed day shall be issued with the consultation of the Government or Administration of the successor Union Territories, as the case may be.

(2)

As soon as may be after the appointed day, the Lieutenant Governor of Jammu and Kashmir shall, by general or special order, determine the successor Union territory to which every person referred to in sub-section (1) shall be finally allotted for service, after consideration of option received by seeking option from the employees, and the date with effect from which such allotment shall take effect or be deemed to have taken effect:

Provided that even after the allocation has been made, Lieutenant Governor of Union territory of Jammu and Kashmir may in order to meet any deficiency in the service, depute officers from one successor Union territory to the other Union territory.

(3)

Every person who is finally allotted under the provisions of sub-section (2) to a successor Union territory shall, if he is not already serving therein, be made available for serving in the successor Union territory from such date as may be agreed upon between the Government of the successor Union territory of Jammu and Kashmir and Administration of Union territory of Ladakh, or, in default of such agreement, as may be determined by the Central Government:

Provided that the Central Government shall have the power to review any of its orders issued under this section.

90.

Other provisions relating to services.

(1)

Nothing in this section or in section 89 shall be deemed to affect, on or after the appointed day, the operation of the provisions of Chapter I of Part XIV of the Constitution in relation to determination of the conditions of service of persons serving in connection with the affairs of the Union or any Union territory:

Provided that the conditions of service applicable immediately before the appointed day in the case of any person deemed to have been allocated to the Union territory of Jammu and Kashmir or Union territory of Ladakh under section 89 shall not be varied to his disadvantage except with the previous approval of the Lieutenant Governor.

(2)

All services prior to the appointed day rendered by a person,-

(a)

if he is deemed to have been allocated to any Union territory under section 89, shall be deemed to have been rendered in connection with the affairs of that Union territory;

(b)

if he is deemed to have been allocated to the Union in connection with the administration of the successor Union territory, shall be deemed to have been rendered in connection with the affairs of the Union, for the purposes of the rules regulating his conditions of service.

(3)

The provisions of section 89 shall not apply in relation to members of any All-India Service.

91.

Provisions as to continuance of officers in same post.

- Every person who, immediately before the appointed day, is holding or discharging the duties of any post or office in connection with the affairs of the existing State of Jammu and Kashmir in any area which on that day falls within one of the successor Union territory shall continue to hold the same post or office in that successor Union territory, and shall be deemed, on and from that day, to have been duly appointed to the post or office by the Government of, or other appropriate authority in, that successor Union territory:

Provided that nothing in this section shall be deemed to prevent a competent authority, on and from the appointed day, from passing in relation to such person any order affecting the continuance in such post or office.

92.

Provision for employees of Public Sector Undertakings, etc.

- On and from the appointed day, the employees of State Public Sector Undertakings, corporations and other

autonomous bodies shall continue to function in such undertaking, corporation or autonomous bodies for a period of one year and during this period the corporate body concerned shall determine the modalities for distributing the personnel between the successor Union Territories.

93.

Provisions as to State Public Service Commission.

(1)

The Public Service Commission for the existing State of Jammu and Kashmir shall, on and from the appointed day, be the Public Service Commission for the Union territory of Jammu and Kashmir.

(2)

The Union Public Service Commission, with the approval of the President, shall serve the needs of the Union territory of Ladakh.

(3)

The persons holding office immediately before the appointed day as the Chairman or other member of the Public Service Commission for the existing State of Jammu and Kashmir shall, as from the appointed day, be the Chairman or, as the case may be, the other member of the Public Service Commission for the Union territory of Jammu and Kashmir.

(4)

Every person who becomes the Chairman or other member of the Public Service Commission for the Union territory of Jammu and Kashmir on the appointed day under subsection (3) shall be entitled to receive from the Government of the Union territory of Jammu and Kashmir, conditions of service not less favourable than those to which he was entitled under the provisions applicable to him.

(5)

The report of the Jammu and Kashmir Public Service Commission as to the work done by the Commission in respect of any period prior to the appointed day shall be presented to the Lieutenant Governor of the Union territory of Jammu and Kashmir, and the Lieutenant Governor of the Union territory of Jammu and Kashmir shall, on receipt of such report, cause a copy thereof together with a memorandum explaining as far as possible, as respects the cases, if any, where the advice of the Commission was not accepted, the reasons for such nonacceptance to be laid before the Legislature of the Union territory of Jammu and Kashmir.

Part XIV ? Legal and Miscellaneous Provisions

94.

Amendment of section 15 of Act

37 of 1956

- On and from the appointed day, in section 15 of the States Reorganisation Act, 1956, in clause (a), for the words "Jammu and Kashmir" the words "Union territory of Jammu and Kashmir and Union territory of Ladakh" shall be substituted.

95.

Territorial extent of laws.

(1)

All Central laws in Table -1 of the Fifth Schedule to this Act, on and from the appointed day, shall apply in the manner as provided therein, to the Union territory of Jammu and Kashmir and Union territory of Ladakh.

(2)

All other laws in Fifth Schedule, applicable to existing State of Jammu and Kashmir immediately before the appointed day, shall apply in the manner as provided therein, to the Union territory of Jammu and Kashmir and Union territory of Ladakh.

96.

Power to adapt laws.

- For the purpose of facilitating the application in relation to the successor Union Territories, of any law made before the appointed day, as detailed in Fifth Schedule to this Act, the Central Government may, before the expiration of one year from that day, by order, make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient, and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent Legislature or other competent authority.

97.

Power to construe laws.

- Notwithstanding that no provision or insufficient provision has been made under section 96 for the adaptation of a law made before the appointed day, any court, tribunal or authority, required or empowered to enforce such law may, for the purpose of facilitating its application in relation to the Union territory of Jammu and Kashmir or Union territory of Ladakh, construe the law in such manner, without affecting the substance, as may be necessary or proper in regard to the matter before the court, tribunal or authority.

98.

Power to name authorities, etc., for exercising statutory functions.

- The Lieutenant Governor, as respects the concerned territory may, by notification in the Official Gazette, specify the authority, officer or person who, on or after the appointed day, shall be competent to exercise such functions exercisable under any law in force on that day as may be mentioned in that notification and such law shall have effect accordingly.

99.

Legal proceedings.

- Where, immediately before the appointed day, the existing State of Jammu and Kashmir is a party to any legal proceedings with respect to any property, rights or liabilities subject to apportionment among the successor Union Territories under this Act, the Union territory of Jammu and Kashmir or the Union territory of Ladakh which succeeds to, or acquires a share in, that property or those rights or liabilities by virtue of any provision of this Act shall be deemed to be substituted for the existing State of Jammu and Kashmir or added as a party to those proceedings, and the proceedings may continue accordingly.

100.

Transfer of pending proceedings.

(1)

Every proceeding pending immediately before the appointed day before a court (other than High Court), tribunal, authority or officer in any area which on that day falls within the State of Jammu and Kashmir shall, if it is a proceeding relating exclusively to the territory, which as from that day are the territories of any Union territory, stand transferred to the corresponding court, tribunal, authority or officer of that Union territory.

(2)

If any question arises as to whether any proceeding should stand transferred under sub-section (1), it shall be referred to the common High Court of Jammu and Kashmir and the decision of that High Court shall be final.

(3)

In this section-

(a)

proceeding includes any suit, case or appeal; and

(b)

corresponding court, tribunal authority or officer in any of Union territory means-

(i)

the court, tribunal, authority or officer in which, or before whom, the proceeding would have laid if it had been instituted after the appointed day; or

(ii)

in case of doubt, such court, tribunal, authority, or officer in that Union territory, as may be determined after the appointed day by the Government or administration of that Union territory, or the Central Government, as the case may be, or before the appointed day by the Government of the existing State of Jammu and Kashmir to be the corresponding court, tribunal, authority or officer.

101.

Right of pleaders to practise in certain cases.

- Any person who, immediately before the appointed day, is enrolled as a pleader entitled to practise in any subordinate court in the existing State of Jammu and Kashmir shall, for a period of one year from that day, continue to be entitled to practise in those courts, notwithstanding that the whole or any part of the territories within the jurisdiction of those courts has been transferred to any of the Union Territories.

102.

Effect of provisions of the Act inconsistent with other laws.

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law.
103.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the President may, by order do anything not inconsistent with such provisions which appears to him to be necessary or expedient for the purpose of removing the difficulty:

Provided that no such order shall be made after the expiry of a period of five years from the appointed day.

(2)

Every order made under this section shall be laid before each House of Parliament.

The First Schedule

(See Section 9)

Union territory of Jammu and Kashmir

Members of Council of State

S.No.

Name of the sitting Member

Term

1.

Fayaz Mir Mohammad

11/02/2015 to 10/02/2021

2.

Laway Shri Nazir Ahmed

16/02/2015 to 15/02/2021

3.

Manhas Shri Shamsher Singh

11/02/2015 to 10/02/2021

4.

Ghulam Nabi Azad

16/02/2015 to 15/02/2021

The Second Schedule

[See Section 11(1)]

Amendments to the Delimitation of Parliamentary Constituencies Order, 1976

Union territory of Jammu and Kashmir

Parliamentary Constituencies

S.No.

Name of the Constituency

Extent of Constituency

1.

Baramulla

Baramulla District

2.

Srinagar

Srinagar District

3.

Anantnag Anantnag District

Anantnag District

4.

Udhampur

Udhampur, Doda and Kathua Districts

5.

Jammu

Jammu, Rajouri and Poonch Districts

Union territory of Ladakh

Parliamentary Constituency

S.No.

Name of the Constituency

Extent of Constituency

1.

Ladakh

Ladakh District

Note. - (i)

Any reference in this Schedule to a district

shall be taken to mean the area comprised within that district

on the 1st day of August, 1975.

(ii)

As per details included in Delimitation of

Parliamentary and Assembly Constituencies Order, 1976 under

Articles 81 & 82 of the Constitution of India as applied to

the State of Jammu and Kashmir by the Constitution (Application
to J&K) Order, 1954 (C.O. 48).

The Third Schedule

[See Section 14(5)]

Amendments to the Delimitation of Assembly Constituencies Order, 1995

Union territory of Jammu and Kashmir

Assembly Constituencies

S. No.

Name of the Assembly Constituency

Extent

1

2

3

Kupwara District

1

Karnah

All PCs of Tehsil Karnah; PC Keran of Tehsil

Kupwara.

2.

Kupwara

PCs 18-Sulakot, 20-Radabug, 22-Bumhama ,

23-Drugmulla, 25-Gushi, 26-Batergam, 27-Dadikoot, 30-Gulgam,

31-Harrai, 32-Hayan, 33-Trehgam, 34-Guglose, 35-Kralpora,

36-Guzeryal, 37-Gundizona-Reshi, 38-Panzgam, 39-Meelyal,

40-Shooloor, 41-Dardihairi-Kharagund, 42-Kupwara and P.C.

55-Manzgam in Tehsil Handwara.

3.

Lolab

PCs 1-Harduring, 2-Chontiwari, 3-Machil,

4-Kalaroch, 5-Khumrayal, 6-Kanthpora, 7-Wawoor, 8-Maidanpora,

9-Khurhama, 10-Warnow, 11-Krusan, 12-Sogam, 13-Darapora,

14-Lalpura, 15-Chandigam, 16-Tekipora, 17-Dewar Inderbug,

19-Manigah, 29-Haihama, 45-Dardapora in Kupwara Tehsil.

4.

Handwara

PCs 8-Maidan Chogal, 28-Taratpora, 29-Wilgam, 30-Lilam, 31-Dulipora, 32-Opzawani, 33-Shogapora, 34-Neelipora, 35-Magam, 36-Jagarpora, 39-Behnipora, 40-Rajpora, 41-Zachaldara, 42-Wadder, 43-Turkapora, 44-Chanjimulla, 45-Wadipora, 46-Bhaki Akhar, 47-Batakoot, 48-Braripora, 49-Waripora Gonipora, 50-Nutanoosa, 51-Kandikhas, 52-Handwara; 53- Dhama, 54-Panchakoot in Tehsil Handwara; and 21-Kegam, 28-Nagrimalpora, 24-Najatpora in Tehsil Kupwara.

5.

Langate

PCs 1- Langate, 2-Unusu, 3-Pohrupeth, 4-Glura, 5- Martgam, 6-Hanga, 7-Shanoo, 9-Nowgam, 10-Mawar, 11-Qalamchakla, 12- Adura, 13-Haril, 14-Drangsoo-Shah- Nagri, 15-Udipora, 16- Kralagund, 17-Lokipora, 18-Kichlo Qazipora, 19-Khaipora, 20-Panditpora, 21-Super-Nagam, 22-Ashapora, 23-Safalpora, 24-Kralpora, 25-Deedarpora, 26-Shathgund-Balla, 27-Rawalpora, 37-Wasiakawnar, 38- Lachampora in Tehsil Handwara. Baramulla District

6.

Uri

All PCs in Tehsil Uri.

7.

Rafiabad

PCs 11-Chakloo, 12-Nadihal, 13-Shitloo, 15-Biner Kahdoora in Tehsil Baramulla; and PCs 5-Nowpora Kalan, 8-Watargam, 9-Fidarpora, 10-Handipora, 11-Yarbug, 12-Riban-Ramhama, 13- Ladora, 14-Rehama, 15-Chijahama, 16- Wanpora, 17-Panzalla- Gundabal, 18-Sailkoot, 19-Balhama-Thakanpora, 20-Chatoosa, 21-Dangiwacha, 22-Rawacha, 23-Harduchanam, 24-Bakshipora-Batapora, 25-Zithan, 36- Behrampora, 37-Chitlora, 38- Achabal in Tehsil Sopore.

8.

Sopore

PCs 1-Sopore with NAC, 2- Warapora, 3-Arampora, 4- Dangerpora, 6- Watalab, 32- Seeloo, 33- Botingoo, 34- Mundji, 35- Duroo, 39- Hardu-Shiva, 41- Aadipora- Bomai, 42-Wadoora, 40-Tujar-Pahlihar, 43- Harwan, 44- Zaloora in Tehsil Sopore.

9.

Gurez

All PCs in Tehsil Gurez.

10.

Bandipora

All PCs in Tehsil Bandipora; and PC 1- Ajas of Tehsil Sonawari.

11.

Sonawari

All PCs in Tehsil Sonawari excluding PC 1-Ajas.

12.

Sangrama

PCs 16-Kreeri, 17-Wizar, 18-Authora, 19-Shalakawara, 20-Nowpora-Jagir, 21-Wagoora, 22-Kachumuqam, 24-Manigam, 25-Kalantara-Balla, 26 - Dandmoh, 27- Sultanpora-Kandi in Tehsil Baramulla; and 7-Tarzoo, 26-Hygam, 27-Seer-Jagir, 28-Bulagam, 29-Sangrama, 30-Krank-Shivan, 31-Wagub in Tehsil Sopore.

13.

Baramulla

PCs 1- Laridora, 2- Heewan, 30 Malapora, 4-Kich-Hama, 50-Ushkara, 6-Khanpora with NAC, 7-Khaja-Bagh, 8-Taki-Sultan, 9-Khaitangan, 10-Delina, 14-Kansipora, 23-Chandoosa in Tehsil Baramulla.

14.

Gulmarg

All PCs in Teshil Gulmarg; and 2-Wailoo Kralpora, 8-Sriwarpora, 9-Chokar, 10- Waripora-Bangil, 12-Malmoh, 13- Nowlari, 16-Yal in Tehsil Pattan.

15.

Pattan

Tehsil Pattan excluding 2-Wailoo-Kralpora, 8-Sriwarapora, 9-Chokar, 10-Waripora Bangil, 12- Malmoh, 13-Nowlari and 16-Yal.

Srinagar District

16.

Kangan

All PCs of Tehsil Kangan; and PCs -Manigam, 2-Wailoo, 3-Nunar in Tehsil Ganderwal.

17.

Ganderbal

Tehsil Ganderbal excluding 1-Manigam, 2-Wailoo, 3-Nunar and P.C. Haran in Srinagar Tehsil.

18.

Hazratbal

Ward 16 in Srinagar Municipality (excluding Municipal areas not falling in Srinagar Tehsil but falling in Ganderbal Tehsil) and PC 9-Bachpora in Tehsil Ganderbal and Wards 17 and 12 except the following Mohallas of Ward 12 ; Mugal Mohalla, Surateng, Khawjapora, Kocha Nidan, Zindashah and boat population of these wards.

19.

Zadibal

Wards 14 and 15 in Srinagar Municipality and boat population of Anchar and of the ghats of these wards.

20.

Idgah

Wards 8 and 11 in Srinagar Municipality and P.C. 38-Palpora and 41-Sangam in Srinagar Tehsil.

21.

Khanyar

Wards 10-13 of Srinagar Municipality and the

following mohallas of Ward 12-Mugal Mohalla, Surateng, Khawjapora, Zindshah and Kocha Nidan and boat population of these wards.

22.

Habbakadal

Wards 7 and 9 in Srinagar Municipality and boat population of Wards 6, 7 and 9.

23.

Amirakadal

Wards 3 and 4 in

Srinagar Municipality excluding (i) Natipora (rural), (ii)

Rawalpura (rural), (iii) Hyderpora (rural) ;

and excluding Aramwari, Gund Chandal, Stingoo,

Sutho Kirther Bagh in Tehsil Chadoora and Watdoor, Galwanpora

Laloo and Shesgam Bagh in Tehsil Badgam and boat population of these wards and of Ward 5.

24.

Sonawar

Wards 1 and 2 in Srinagar Municipality and

Badamibagh Cantonment and P.C. 21-Chitrahama, 19-Dara,

29-Khunmu, 30-Balhama, 31-Zewan in Tehsil Srinagar and boat

population of ghats in these wards.

25.

Batamaloo

Wards 5 and 6 in Srinagar Municipality ; and

PCs 6-Mujgund, 42-Bachipora Tengpora in Srinagar Tehsil.

Budgam District

26.

Chadoora

The following Patwar Circles of Tehsil

Chadoora, 16-Chadoora, 24-Chattergam, 25-Wagora, 26-Wathura,

27-Khanda, 28-Bugam Batapora, 29-Kralpora, 30-Hayatpora,

31-Pohroo, 32-Rakh Shalina, 33-Bagati Kanipora, 34-Nowgam,

35-Kanihama, 36-Daulatpora, 38-Natipora rural area outside

Srinagar Municipal limits in ward 4 and 39-Lasjan and Aramwari,

Gund, Chandal Stengoo, Suthoo, Kirtherbagh and 40-Kursu

Padshahibagh.

27.

Badgam

PCs 1-Soibugh, 2-Dhrmana, 3-Wahabpora, 4-Arth,

5-Wadwan, 6-Bemina, 7-Pallar, 8-Garriend Kalan, 9-Sholipra,

10-Nassar-ullah-Pora, 11-Jahama, 12-Water-Wani, 28-Chune,

29-Badgam, 30-Ompora 31-Narkara, 32-Humhama, 35-Karewa Damodar,

36-Gund-Sathu, 37-Ichakoot, 38-Ichgam, 33-Rawalpora (rural),

34-Hyderpora (rural) in Badgam Tehsil.

28.

Beerwah

PCs 1-Suzeth-Gooripora, 2-Kawoosa Khalisa,

3-Kawoosa Jagir, 4-Batapora Kahiama, 5-Sanoor-Kalipora, 6-Hardu

Malpora, 7-Bandagam, 8-Utligam, 9-Mula- Shulla, 10-Sonapah,

12-Gondipora, 21-Shanglipora, 22-Khag, 23-Malpora Khag,

24-Himchipora, 25-Lalpura, 26-Beerwah, 27-Chewdara, 28-Peth Mukahama, 29-Rathusun, 30-Bona Makhama, 31-Nagam, 32-Iskanderpora, 33-Aripanthan, 34-Palpura, 36-Hardua-Shorsh in Tehsil Beerwah.

29.

Khansahib

PCs 1-Hokhalatri, 13-Phartahn, 14-Kandoora, 15-Drahg, 16-Sitaharan, 17-Zogikharian, 18-Arizal, 19-Qamroo, 20-Rawalpora-Beerwah ; and PC 35- Sail in Tehsil Berwah; and PCs 13-Waterhail, 14-Jawalapora, 15-Sondipora, 16-Dalipora, 17-Yari Khah, 18-Talapora, 19-Parnawah, 20-Drayagram, 21-Frestwar Khasipora, 22-Arigam, 23-Khan Sahib, 24-Raithan, 25-Kachwari, 26-Gurwait Kalan, 27-Falchall in Tehsil Budgam.

30.

Chrar-i-Sharief

PCs 1-Gogji Pathari, 2-Brinjan, 3-Hafroo Batapora, 4-Branawar, 5-Surasyar, 6-Dada- Ompara, 7-Hanjura, 8-Nowpora, 9-Pakharpora, 10-Hardu Dalwan Futlipora, 11-Teelsarah, 12-Chrar-i-Sharief, 13-Watkaloo, 14-Darawan Nowgam, 15-Chtsesn, 17-Nagam, 18-Badipora, 19-Yarikalan, 20-Ropora Namtihal, 21-Kanir, 22-Ranger, 23-Sogam, 37-Nowhar in Tehsil Chadoora.

Pulwama District

31.

Tral

All PCs in Tehsil Tral.

32.

Pampore

All PCs in Tehsil Pampore and Patwar Circles

26-Awantipora, 27-Padgampora, 29-Lilhar, 46-Nihama, 47-Kakapora in Tehsil Pulwama.

33.

Pulwama

PCs 1-Inder, 2-Gangoo, 5-Pulwama with NAC, 9-Ratnipora, 10-Pahoo, 11-Trich, 12-Koil, 13-Pinglina, 14-Narwa, 17-Litter-Shistar, 18-Nayina, 19-Panzgam, 20-Dogripora, 21-Rishipora, 22-Laderpur, 23-Nownagri, 24-Tokna, 25-Malangpora, 28-Lajoora, 40-Palapora, 45-Newa, 48-Jagir Parigam, 49-Tumchi Nowpora, 50-Hakripora in Tehsil Pulwama.

34.

Rajpora

PCs 3-Karimabad, 4-Moran, 6-Kangan, 7-Wahibugh, 8-Gosoo, 15-Bonarah, 16-Trichal, 30-Ramoo, 31-Billowdergund, 32-Qasbayar, 33-Drubgam, 34-Mitrigam, 35-Abhama, 36-Trujan, 37-Khaigam, 38-Noorpora Payeen, 39-Arihal, 41-Tahab- Shadipora, 42-Achan, 43-Chandigam, 44-Rajpora in Tehsil Pulwama.

35.

Wachi

PCs 8-Kalroo Malikgund, 9-Nadigam, 11-Dangerpora, 12-Turka Wangam, 13-Urapora, 14-Hardu-Handow, 15-Harmain, 16-Chak-Chowand, 17-Kapran, 19-Dangam, 20-Chakora,

21-Pratabpora, 24-Kanji-Ullar, 25-Chitragam,, 26-Darikalpora, 27-Hef, 28-Sugan, 29-Awnera, 30-Wachi, 31-Aglar, 32-Zainapora, and 39-Allowpora- Sheikhpora in Tehsil Shopian.

36.

Shopian

PCs 1-Saidapora, 2-Meemandar, 3-Arhama, 4-Pinjoora, 5-Ganowpora Arish, 6-Bemnipoora, 7-Harapora, 10-Trenz, 18-Vehilchal-Awattoo, 22-Sedew, 23-Ram Nagri, 33-Diyaroo, 34-Barthipora, 35-Daramdoora, 36-Zoora-Baderhama, 37-Narapora, 38-Keegam, 40-Keller Mastpora, 41-Pahlipora, 42-Sindhu-Shrimal, 43-Shopian, 44-Devipora (forest block) in Tehsil Shopian.

Anantnag District

37.

Noorabad.

PCs 5-Malwan, 6- Pahloo, 7-Akhal, 23- Gudder, 34-Brinal Lamber, 46-Damhal- Hanjipora, 47- Ahmada-Abad, 48-Yaroo, 49 - Hardu-Mandagori, 51- Manzgam, 52-Asnoor, 53-Wattoo, 54-Avil, 55-Khuri-Batapora, 56-Nagam, 57-Danow-Kandimarg, 58-Bdi-Jehalan, 59-Chimar, 60-Qasba Khul, 61-Nandimarg in Tehsil Kulgam.

38.

Kulgam

PCs 1-Kulgam with NAC, 2-Hanad-Chawalgam, 3-Amnoo, 4-Chamabagund, 11-Ashmuji, 19-Mirhama, 20-Akey, 21-Pariwan, 22-Chehla, 24-Areh, 25-Bihibagh, 26-Gopalpora, 38-Bugam, 39-Tarigam-Devsar, 43-Yamroch, 44-Munand-Guffan, 45-Katersoo, 50-Largurhama in Tehsil Kulgam.

39.

Home-Shalibugh

PCs 8-Uranhal, 9-Tuli-Nowpora, 10-Kujar, 12-Redwani, 13-Arwani, 14-Frisal, 15-Jablipora, 16-Wanpora, 17-Hassanpora Tavela, 18-Khandi-Phari, 40-Tarigam- Devibugh, 41-Matibugh, 42-Homshalibugh in Tehsil Kulgam.

40.

Anantnag

PCs 1-Qasba Bhagat, 2-Khanabal, 3-Roohoo, 4-Kamar, 5-Anchidoora, 6-Hardu- Chichan, 10-Ranbirpora in Tehsil Anantnag.

41.

Devsar

PCs 27-Devsar, 28-Bona Devsar, 29-Kilam-Buzgam, 30-Hablishi, 31-Nipora, 32-Laram- Ganipora, 33-Chowgam, 35-Razloo, 36-Waitengu, 37-Sopat Tengpora, 62-Oral in Tehsil Kulgam ; and PCs 18-Vesoo, 19-Nasoo-Badargund, 20-Panzeth, 21-Kurigam, 23- Qazigund with NAC in Doru Tehsil.

42.

Doru

PCs 1- Doru, 2-Bragam, 3-Oibamdooth, 4-Mantpora, 5-Larkipora, 6-Hakura, - Badasgam, 7-Batgund,

8-Verinag, 9-Sadiwara, 10-Mundah, 11-Hiller, 12-Nowgam Shahabad, 13-Rain-Chowgund, 14-Thamankoot, 15-Qamar, 16-Halsidar, 17-Kapron, 22- Wangund in Tehsil Doru.

43.

Kokernag

PCs 28-Saagam, 29-Bider-Hayatpora, 30-Bhai, 31-Akingam, 32-Nagam, 33-Soof-Shali, 34-Panzgam, 35-Bindo-Zulangam, 36-Dealgam, 37-Nalla-Sund-Brari, 38-Lohar-Sanzi, 39-Ahlan-Gadol, 40-Kharatti, 41-Desoo, 42-Kharapora, 43-Qasba-Nowbugh, 44-Mati Hundoo, 45-Larnoo, 46-Kokernag NAC, 47-Achabal NAC in Tehsil Anantnag.

44.

Shangus

PCs 13-Sahibabad, 14-Nowgam, 15-Imoh, 16-Brakapora, 17-Shangus, 18-Uttarsoo, 19-Kreri, 20-Chatergul, 21-Ghikalpora, 22-Ranipora, 23-Detho-Nagnarian, 24-Gopalpora, 25-Telwani, 26-Kwarigam, 27-Ahupaisan in Tehsil Anantnag.

45.

Bijbehara

All PCs in Tehsil Bijbehara and PCs 7-Macha Bawan, 11-Nanilang, 12-Akora in Tehsil Anantnag.

46.

Pahalgam

All PCs in Tehsil Pahalgam and PCs 8-Seer-Kanligund, 9-Salia in Tehsil Anantnag.

Doda District

47.

Kishtwar

PCs 1-Marghi, 2-Inshan, 3-Yerudu, 4-Renai, 5-Nowpachi, 6-Chanjer, 7-Qaderana, 8-Deharana, 9-Lopara, 10-Loharna, 11-Soundhar, 19-Palmar, 30-Trigam, 31-Kishtwar, 32-Matta, 33-Poochal, 34-Dool, 35-Bhagnah, 36-Galarbahta, 37-Atholi, 38-Sohal, 39-Ishtiari, 40-Gulabgarh, 41-Massu, 42-Kishtwar NAC, 43-Forest Block in Tehsil Kishtwar.

48.

Inderwal

PCs 12-Chingam, 13-Inderwal, 14-Chatroo, 15-Sigdi, 16-Moolchhiter, 17-Drubeel, 18-Kochal, 20-Filler, 21-Pakhalan, 22-Keshwan, 23-Shandri, 24-Sangna, 25-Patnazi, 26-Jawalapur, 27-Loundri, 28-Badhat and 29-Karool in Tehsil Kishtwar ; PCs 1-Jakyas in Tehsil Bhalesa (Gandoh) and following PCs of Tehsil Thathri :-- 1-Jangalwar, 3-Malanoo, 4-Kansu, 10-Kandote.

49.

Doda

All PCs of Tehsil Doda except 8-Dessa, 9-Dhandal, 10-Kastigarh, 11-Shamti, 12-Chaka Kundi, 13-Assar, 14-Charrota.

50.

Bhaderwah

All PCs of Tehsil

Bhaderwah and PCs 2-Budhli, 3-Chilli, 4-Drawani, 5-Kahal Jugasar, 6-Budwar, 7-Chanisar, 8-Kilotran, 9-Kharangal, 10-Gandoh in Tehsil Bhalesa ; and PCs 2-Jora, 5-Bhaja, 6-Bhalla, 7-Jagiti, 8-Bhallari, 9-Rokali, 11-Pamshayee in Tehsil Thathri.

51.

Ramban (SC)

All PCs of Tehsil Ramban except 5-Sarbagni and PCs of 8-Dessa, 9-Dhandhal, 10-Kastigarh, 11-Shamti, 12-Chaka, 13-Assar, 14-Charrota of Tehsil Doda.

52.

Banihal

All PCs of Tehsil Banihal and 5-Sarbagni in Tehsil Ramban.

Udhampur District

53.

Gulabgarh

PCs 2-Mahore, 2-Sarh, 3-Dewal, 4-Gulabgarh, 5-Chasote, 6-Bagankote, 7-Shergarhi, 8-Shikari, 9-Kanthi, 10-Tulibana, 13-Shajroo in Tehsil Gulabgarh and PC 16-Jij in Tehsil Reasi.

54.

Reasi

Tehsil Reasi except following Pcs:-

1.Salal, 15-Chinkah, 16-Jij, 17-Thakrakote and following PCs of Tehsil Udhampur:- 13-Panjar, 14-Lali, 15-Ladah, 17-Dhandu, 18-Jhandawa, 32-Badhota and 19-Suhal.

55.

Gool Arnas

Following PCs of

Tehsil Gool Gulabgarh:-

11-Thuru, 12-Bhudhan, 14-Kanthan, 15-Judda, 16-Dhanow, 17-Kali Masta, 18-Gool, 19-Thatharka, 20-Sangaldan, 21-Forest Block ; and 1-Salal, 15-Chinkah, 17-Thakrakote in Tehsil Reasi.

56.

Udhampur All

PCs of Tehsil

Udhampur except the following PCs :-

13-Panjar, 14-Lali, 15-Ladha, 17-Dhandu, 18-Jhandawa, 19-Suhal, 20-Ludha, 21-Balian, 27-Sunal, 29-Meer, 30-Kathi, 32-Badhota.

57.

Chenani (SC)

All PCs of Tehsil

Chenani and following PCs of Tehsil Udhampur :-

20-Ladha, 21-Balian, 27-Sunal, 29-Meer, 30-Kathi and following PCs of Tehsil Ramnagar.

10-Dudu, 11-Latti, 31-Ghordi, 33-Hartarian,
34-Dandal, 35-Barmeen, 36-Nalla Ghoran.

58.

Ramnagar

All PCs of Tehsil

Ramnagar except the following :-

10-Dudu, 11-Latti, 31-Ghordi, 33-Hartarian,
34-Dhandal, 35-Barmeen, 36-Nala Ghoran.

Kathua District

59.

Bani

PCs 14-Bani, 15-Banjai, 16-Fatehpur,

17-Sandroon, 18-Rolka, 19-Buggah, 20-Lowang, 21-Kanthai,
22-Surjan, 23-Dhanggar, 24-Koti, 25-Forest Block in Tehsil
Basohli and 9-Godu Flai, 10-Bdnota, 11-Machadi, 20-Malhar in
Tehsil Billawar.

60.

Basohli

PCs 1-Thein, 2-Basantpur, 3-Lakhanpur, 4-Hatli,
7-Tridwan, 36-Lakhanpur NAC, 29-Berthian and 30-Sorlian in
Tehsil Kathua and PCs 1-Basohli, 1-a-Basohli NAC, 2-Sandhar,
3-Hutt, 4-Bhoond, 5-Saman, 6-Dhar Jankar, 7-Dhar Mahanpur,
8-Plahi, 9-Prita, 10- Saber, 11-Patti, 12-Athalith, 13-Mahanpur
in Tehsil Basohli and PCs 21-Dhar Digno, 22-Huttar, 23-Dambra in
Tehsil Billawar.

61.

Kathua

PCs 5-Dilwan, 6-Maha, 8-Kharote, 9-Taraf
Manjili, 10-Taraf Tajwal, 11-Karian, 12-Taraf Bajwal,
13-Changran, 14-Govindsar, 15-Chak Soon Noopa, 16-Khakhyal,
17-Mirpur Ram, 18-Taraf Balla, 20-Katharian, 21-Janglote,
22-Loagate, 23-Jakhbar, 24-Airwan, 26-Chak Sakta, 27-Budhi,
28-Nanan, 31-Barwal, 32-Jherhere, 33-Kathua Forest Block,
34-Kathua NAC , 35-Perlai and 25-Folote in Tehsil Kathua.

62.

Billawar

PCs 11-Katli, 17-Bhaya, 21-Denga Amb,
23-Dhamal, 25-Mangloor, 26-Chelakh, 27-Salain in Tehsil
Hiranagar and PCs 1-Ramkot, 2-Makwal, 3-Salora, 4-Rajwla,
5-Danjisdhar, 6-Thara Kalwal, 7-Kalyal, 8-Thanthoo, 12-Kohag,
13-Malti, 14-Durang, 15-Dharan Kote, 16-Bhaddu, 17-Billawar,
18-Billawar NAC, 19-Buggan, 24-Parnala, 25-Pallan in Tehsil
Billawar and PC 19-Juthana in Tehsil Kathua.

63.

Hiranagar (SC)

1-Jatwal, 2-Nonath, 3-Ghagwal, 4-Sarath,
5-Bhatyari Kotlan, 6-Sanoora, 7-Mawa, 8-Nohran, 9-Chachwal,
10-Sarti Kalan, 12-Chak Dulma, 13-Jondi, 14-Londi, 15-Rajpura,
16-Kootah, 18-Gurah Mathian, 19-Bavia, 20-Katal Brahmana,
24-Hamirpur, 28-Chhan Rorian, 29-Marheen, 22-Saiswan,
30-Khanpur, 31-Hiranagar, 32-Hiranagar NAC, 33-Pansar, 34-Kore

Punu, 35-Chak Deva, 36-Chak Bhagwana, 37-Chak Kahna, 38-Chadwal, 39-Forest Block in Tehsil Hiranagar.

Jammu District

64.

Samba (SC)

PCs 1-NAC Samba, 2-Samba Khas, 3-Taloor, 4-Amli, 5-Durin, 6-Katli, 7-Ram Nagar, 8-Pingdore, 11-Sunian, 10-Sarna, 12-Bhartgarh, 13-Suran, 14-Goran, 15-Balhter, 17-Katwala, 18-Kharah Madena, 21-Baghore, 22-Purmandal, 24-Mohar Garh, 25-Badhari, 26-Kard in Tehsil Samba and PC 28-Chaudi in Jammu Tehsil.

65.

Vijaypur

PCs 9-Khanpur, 20-Vijaypur, 23-Gurah Salathian, 28-Harmander, 29-Chak Salarian, 30-Nanga, 31-Logwal, 32-Keso Manhasan, 33-Ramgarh, 34-Gho-Brahmana, 35 Chak Chataka, 36-Chann Fatwal, 37-Abtal, 38-Swankha, 39-Mahal Shan, 40-Rari, 41-Smailpur, 27-Birpur, 42-Tarore, 43-Bagla, 44-Gandwal in Tehsil Samba.

66.

Nagrota

PCs 39-Ranjan, 40-Sarote, 41-Jandial, 42-Gorda, 44-Nagrota, 45-Dansal, 46-Jhajar Kotli, 47-Thara, 48-Bamyal, 49-Katal Batal, 50-Shiba, 51-Jagti, 52-Jindrah, 53-Kanyala, 54-Kothar, 55-Kharte, 56-Dhan, 57-Songoon, 58-Ponthal, 59-Surinsar in Tehsil Jammu and PCs 16-Bain Bajalta, 19-Aitham in Tehsil Samba.

67.

Gandhinagar

Ward-16 (Gandhinagar), Ward-17 (Naibasti), Ward-22 (Chhani Rama), Ward-23 (Bahu), 24-Digiana, 26-Bahu, 27-Sunjwan, 29-Gadigarh, 30-Satwari in Tehsil Jammu.

68.

Jammu East

Wards 1 to 6, 9, 10, 12 and 15.

69.

Jammu West

Wards 7, 8, 11, 13, 14, 18, 19, 20 and 21.

70.

Bishnah

All PCs in Tehsil Bishnah and 25-Naugran in Tehsil Jammu.

71.

R. S. Pura (SC)

PCs 1-Salhar, 2-Rathana, 3-Kandlihar, 4-Khour, 5-Kalyana, 14-R. S. Pura with NAC, 15-Khas Gigian, 16-Chohalla, 19-Kirpind, 20-Kotli Shah Dula, 25-Marlia, 24-Darsopur, 35-Gondla in Tehsil R. S. Pura.

72.

Suchetgarh

PCs 6-Dablihar, 7-Magowali, 8-Parlah, 9-Chak

Baza, 10-Nekowal, 11-Jevroh, 12-Saie Kalan, 13-Chak Mulo, 17-Badyal Brahmana, 18-Jssore, 21-Chak Agra, 22-Fatehpur Brahmana, 25-Samka, 26-Basapur, 27-Rangpur Malana, 28-Suchetgarh, 29-Chandu Chak, 30-Satowali, 31-Grarana, 32-Badyal Qazian, 33-Abdal, 34-Chakroi in Tehsil R. S. Pura.

73.

Marh

PCs 60-Prahaladpur, 61-Mandal, 62-Sum, 65-Gho Manhasan, 66-Sohanjana, 67-Thub, 68-Sahran, 69-Rathua, 70-Chanore, 71-Makwal, 72-Gool, 74-Gajansoo, 75-Kalyanpur, 76-Kahnachak, 77-Marh, 78-Gangoo Chak, 79-Kalrup, 80-Dhateryal, 31-Flora Nagbani in Tehsil Jammu.

74.

Raipur Domana (SC)

PCs 31-Paloura, 32-Muthi, 33-Barn, 34-Siri Panditan, 35-Gharota, 36-Raipur Domana, 37-Kot Bhalwal, 38-Amb, 43-Kaink, 63-Hakkal, 64-Khandwal, 73-Bhadora, 82-Panjore in Tehsil Jammu.

75.

Akhnoor

PCs 1-Chowki, 2-Choura, 3-Kathar, 4-Mandarian, 8-Narri, 6-Ambaran, 7-Barui, 9-Ganderwan, 10-Manda, 11-Akhnoor Khas, 12-Sungal, 13-Pangairi, 14-Devipur, 15-Chak Kirpalpur, 16-Jadh, 17-Muthi Maira, 18-Rakh Dhoke, 19-Saliote, 20-Ghar Majoor, 21-Mawa Brahmana, 22-Leherian in Tehsil Akhnoor.

76.

Chhamb (SC)

PCs 8-Mattoo, 24-Gurah Manhasan, 25-Sarwal, 23-Pargwal, 26-Bhalwal Malu, 27-Hamirpur, 28-Bakore, 29-Chak Malal, 30-Derian, 31-Sainth, 32-Gigarial, 33-Khour, 34-Kot Mera, 35-Palanwala, 36-Kharah, 37-Nathal, 38- Doori, 39-Chhani Dewanoo, 40-Samuan, 41-Chakla in Tehsil Akhnoor.

Rajouri District

77.

Nowshera

All PCs of Tehsil Nowshara except 11-Narian and all PCs of Tehsil Sunderbani.

78.

Darhal

All PCs of Tehsil

Budhal except 3-Khawas, 6-Kote Chalwal and following PCs of Tehsil Thanamandi :-

5-Darhal, 6-Chowdian, 7-Nadian, 8-Ujhan ; and

PC 4-Nagrota in Tehsil Rajouri.

79.

Rajouri

Following PCs of

Tehsil Rajouri :-

1-Gambir Muglan,

2-Dani-Dhar, 7-Bathooni, 8-Sarola, 9-Sohana, 10-Doongi Brahmana,

11-Katarmal, 12-Deri Delote, 13-Panj Grain, 14-Galhoti,

15-Fatehpur, 17-Bagla, 19-Rampur with NAC Rajouri with following
PCs of Thanamandi Tehsil:-

1-Dodasan Balla, 2-Saaj, 3-Shahdara Sharief,
4-Hosplote, 10-Thanamandi with NAC and 9-Bharote.
80.

Kalakote

All PCs of Tehsil

Kalakote and following PCs of Tehsil Rajouri :-

2-Dalhari,
3-Dhangri, 6-Potha Grlana, 16-Khanpur Chingus, 18-Bhadoo and PC
11-Narian of Tehsil Nowshera ; and
3-Khaskote Chalwal of Budhal Tehsil.

Poonch District

81.

Surankote

All PCs in Surankote Tehsil and PCs 12-Rajpur,
21-Shindra, 22-Seri-Khawja in Poonch Tehsil.

82.

Mendhar

All PCs of Tehsil Mendhar.

83.

Poonch Haveli

All PCs of Tehsil Poonch except 12-Rajpur,
21-Shindra, 22-Sheri Khawja.

Note.- Any reference in this

table to a Tehsil, Patwar Circle (P.C.), Ward or N.A.C.

(Notified Area Committee) shall be taken to mean the area
comprised within that Tehsil, Patwar Circle, Notified Area
Committee or Ward as on 1-4-1995.

The Fourth Schedule

(See Sections 16, 24 and 54)

Forms of Oaths or Affirmations

I

Form of Oath or Affirmation To be Made by a Candidate For Election To The Legislative Assembly of The Union Territory of Jammu and Kashmir

"I, A.B., having been nominated as a candidate to fill a seat in the Legislative Assembly of _____do swear in the name of God/ solemnly affirm that I will bear true faith and allegiance to the Constitution of India as by law established and that I will uphold the sovereignty and integrity of India."

II

Form of Oath or Affirmation To Be Made by a Member of The Legislative Assembly of The Union Territory of Jammu and Kashmir

"I, A.B., having been elected (or nominated) a member of the Legislative Assembly of _____ do swear in the name of God/ solemnly affirm that I will bear true faith and allegiance to the Constitution of India as by law established, that I will uphold the sovereignty and integrity of India and that I will faithfully discharge the duty upon which I am about to enter."

III

Form of Oath of Office For a Member of The Council of Ministers of The Union Territory of Jammu and Kashmir

"I, A.B., _____ do swear in the name of God/ solemnly affirm that I will bear true faith and allegiance to the Constitution of India as by law established, that I will uphold the sovereignty and integrity of India, that I will faithfully and conscientiously discharge my duties as a Minister for the Union territory of _____, and that I will do right to all manner of people in accordance with the Constitution and the law without fear and favour, affection or ill-will."

IV

Form of Oath of Secrecy For a Member of The Council of Ministers of The Union Territory of Jammu And Kashmir

"I, A.B., _____ do swear in the name of God/ solemnly affirm that I will not directly or indirectly communicate or reveal to any person or persons any matter which shall be brought under my consideration or shall become known to me as a Minister for the Union territory of _____, except as may be required for the due discharge of my duties as such Minister."

The Fifth Schedule

(See Sections 95 and 96)

Table - 1

Central Laws Made Applicable To The Union Territory of Jammu and Kashmir; and Union Territory of Ladakh

S.No.

Name of the Act

Section/Amendments

1.
The Aadhar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016.
In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.
2.
The Administrative Tribunal Act, 1985.
Clause (b) of sub-section (2) of section 1 shall be omitted.
3.
The Anand Marriage Act, 1909.
In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.
4.
The Arbitration and Conciliation Act, 1996.
Proviso to sub-section (2) of section 1 shall be omitted.
5.
The Prohibition of Benami Property Transactions Act, 1988.
In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.
6.
The Charitable Endowment Act, 1890.
In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.
7.
The Chit Funds Act, 1982.
In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.
8.
The Code of Civil Procedure, 1908.
Clause (a) of sub-section (3) of section 1 shall be omitted.
9.
The Code of Criminal Procedure, 1973.
In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.
10.
The Commercial Courts Act, 2015.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

11.

The Commissions for Protection of Child Rights Act, 2006.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

12.

The Commissions of Inquiry Act, 1952.

Proviso to sub-section (2) of section 1 shall be omitted.

13.

The Consumer Protection Act, 1986.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

14.

The Contempt of Courts Act, 1971.

Proviso to sub-section (2) of section 1 shall be omitted.

15.

The Delimitation Act, 2002.

Section 2(f) shall be omitted.

16.

The Dissolution of Muslim Marriages Act, 1939.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

17.

The Disturbed Areas (Special Courts) Act, 1976.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

18.

The Dowry Prohibition Act, 1961.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

19.

The Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

20.

The Easements Act, 1891.

Extended as whole.

21.

The Electricity Act, 2003.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

22.

The Employees Provident Funds and Miscellaneous Provisions Act, 1952.

In sub-section (2) of section 1, words, "except

the State of Jammu and Kashmir" shall be omitted.

23.

The Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act, 1993.
Extended as whole.

24.

The Enemy Property Act, 1968.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

25.

The Energy Conservation Act, 2001.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

26.

The Family Courts Act, 1984.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

27.

The Fatal Accidents Act, 1855.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

28.

The Forest (Conservation) Act, 1980.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

29.

The General Clauses Act, 1897.

Extended as whole.

30.

The Governors (Emoluments, Allowances and Privileges) Act, 1982.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

31.

The Gram Nyayalayas Act, 2009.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

32.

The Guardians and Wards Act, 1890.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

33.

The Hindu Adoptions and Maintenance Act, 1956.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

34.

The Hindu Disposition of Property Act, 1916.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

35.

The Hindu Marriage Act, 1955.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

36.

The Hindu Minority and Guardianship Act, 1956.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

37.

The Hindu Succession Act, 1956.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

38.

The Identification of Prisoners Act, 1920.

Extended as whole.

39.

The Indecent Representation of Women(Prohibition) Act, 1986.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

40.

The Indian Boilers Act, 1923.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

41.

The Indian Christian Marriage Act, 1872.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

42.

The Indian Contract Act, 1872.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

43.

The Indian Easements Act, 1882.

Extended as whole.

44.

The Indian Evidence Act, 1872.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

45.

The Indian Forest Act, 1927.

Extended as whole.

46.

The Indian Nursing Council Act, 1947.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

47.

The Indian Partnership Act, 1932.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

48.

The Indian Penal Code, 1860.

In section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

49.

The Indian Stamp Act, 1899.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

50.

The Indian Succession Act, 1925.

Extended as whole.

51.

The Indian Trusts Act, 1882.

In section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

52.

The Indian Veterinary Council Act, 1984.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

53.

The Judges (Protection) Act, 1985.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

54.

The Judicial Officers Protection Act, 1850.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

55.

The Juvenile Justice (Care and Protection of Children) Act, 2015.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

56.

The Legal Services Authorities Act, 1987.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

57.

The Limitation Act, 1963.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

58.

The Maintenance and Welfare of Parents and Senior Citizens Act, 2007.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

59.

The Majority Act, 1875.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

60.

The Medical Termination of Pregnancy Act, 1971.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

61.

The Muslim Personal Law (Shariat) Application Act, 1937.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

62.

The Muslim Women (Protection of Rights on Divorce) Act, 1986.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

63.

The National Commission for Minorities Act, 1992.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

64.

The National Commission for Minority Educational Institutions Act, 2004.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

65.

The National Commission for Safai karamcharis Act, 1993.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

66.

The National Commission for Women Act, 1990.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

67.

The National Council for Teacher Education Act, 1993.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

67-A

National Security Act, 1980

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

68.

The National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

69.

The Oaths Act, 1969.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

70.

The Partition Act, 1893.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

71.

The Pharmacy Act, 1948.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

72.

The Powers-of-Attorney Act, 1882.

In section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

73.

The Preconception and Pre-natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

74.

The Prevention of Blackmarketing and Maintenance of Supplies of Essential Commodities Act, 1980.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

75.

The Prevention of Corruption Act, 1988.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

76.

The Prevention of Cruelty to Animals Act, 1960.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

77.

The Prevention of Damage to Public Property Act, 1984.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

78.

The Prisoners Act, 1900.

Extended as whole.

79.

The Prisons Act, 1894.

Extended as whole.

80.

The Private Security Agencies (Regulation) Act, 2005.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

81.

The Prize Chits and Money Circulation Scheme (Banning) Act, 1978.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

82.

The Probation of Offenders Act, 1958.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

83.

The Prohibition of Child Marriage Act, 2006.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

84.

The Prohibition of Employment as Manual Scavengers and their Rehabilitation Act, 2013.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

85.

The Protection of Children From Sexual Offences Act, 2012.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

86.

The Protection of Human Rights Act, 1993.

Proviso to sub-section (2) of section 1 shall be omitted.

87.

The Protection of Women from Domestic Violence Act, 2005.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

88.

The Public Gambling Act, 1867.

Extended as whole.

89.

The Public Records Act, 1993.

Extended as whole.

90.

The Registration Act, 1908.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

91.

The Religious Endowments Act, 1863.

Extended as whole.

92.

The Religious Institutions (Prevention of Misuse) Act, 1988.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

93.

The Right of Children to Free and Compulsory Education Act, 2009.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

94.

The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

In sub-section (2) of section 1, words, "except

the State of Jammu and Kashmir" shall be omitted.

94A.

The Representation of People Act, 1951.

In Section (2),

(i) In sub-section (1) in clause (d) the words "other than the State of Jammu and Kashmir" shall be omitted; and (ii) Sub-section (5) shall be omitted.

95.

The Right to Information Act, 2005.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

96.

The Sale of Goods Act, 1930.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

97.

The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forests Rights) Act, 2007.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

98.

The Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

99.

The Special Marriage Act, 1954.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

100.

The Specific Relief Act, 1963.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

101.

The Suits Valuation Act, 1887.

Extended as whole.

102.

The Transfer of Property Act, 1882.

Extended as whole.

103.

The Transplantation of Human Organs and Tissues Act, 1994.

Extended as whole.

104.

The Wakf Act, 1995.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

105.

The Whistle Blowers Protection Act, 2014.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

106.

The Wild Life (Protection) Act, 1972.

In sub-section (2) of section 1, words, "except the State of Jammu and Kashmir" shall be omitted.

Table - 2

State Laws which Shall be Applicable to the Union Territory of Jammu and Kashmir and Union Territory of Ladakh with Amendments

S.No.

Year

No.

Short title

Amendments

1

2

3

4

5

1.

Svt 1977 (1920AD)

XLII

The Transfer of Property Act

Section 139 and section 140 shall be omitted.

2.

Svt 1995 (1938 AD)

V

The Jammu and Kashmir Alienation of Land Act

Section 4 and section 4-A shall be omitted;

3.

Svt 2007 (1950 AD)

XVII

The Jammu and Kashmir Big Landed Estates

Abolition Act

Section 20-A shall be omitted.

4.

1960

xxxvm

The Jammu and Kashmir Land Grants Act

A. Provisos to sub-section 1 of section 4 shall be omitted; and

B. Clause (i) of sub-section 2 of section 4 shall be omitted.

5.

1976

XVII

The Jammu and Kashmir Agrarian Reforms Act

Section 17 shall be omitted.

6.

1989

X

The Jammu and Kashmir Cooperative Societies Act

Sub-Clause (ii) of clause (a) of sub-section

(1) of section 17 shall be omitted.

7.

2004

XIV

The Jammu and Kashmir Reservation Act

A. In section 2 after clause (g), the following

clause shall be inserted namely:-

"(ga) "economically weaker sections"

means such categories as may be notified by the Government from time to time, on the basis of family income and other indicators of economic disadvantage, other than the classes or categories defined in clauses (m), (n) and (o)";

B. In section 3, in sub-section (1),-

(i) in clause (a), the word "and"

occurring at the end shall be omitted;

(ii) in clause (b), for the words "backward classes:", the words "backward classes; and" shall be substituted;

(iii) after clause (b), the following clause shall be inserted, namely:-

"(c) economically weaker sections:";

(iv) in the first proviso, for the words "the total percentage of reservation", the words, brackets and letters "the total percentage of reservation provided in clauses (a) and (b)" shall be substituted;

(v) in the second proviso, for the words "Provided further that", the following shall be substituted, namely:-

"Provided further that the reservation in appointments in favour of the persons belonging to economically weaker sections shall be in addition to the existing reservation as provided in this subsection and shall be subject to a maximum of ten per cent. of the posts in each category: Provided also that".

C. In section 9, in sub-section (1),-

(i) for the portion beginning with "shall reserve" and ending with "from time to time;", the following shall be substituted, namely:-

"shall reserve seats in the Professional Institutions for candidates belonging to,-

(a) reserved categories and such other classes or categories as may be notified from time to time; and

(b) economically weaker sections:";

(ii) in the proviso, for the words "the total percentage of reservation", the words, brackets and letter "the total percentage of reservation provided in clause (a)" shall be substituted;

(iii) after the proviso, the following proviso shall be inserted, namely:-

"Provided further that the reservation in the Professional Institutions in favour of the persons belonging to economically

weaker sections shall be in addition to the existing reservation as provided in this sub-section and shall be subject to a maximum of ten per cent. of the seats in each category.".

Table - 3

State Laws Including Governor's Acts Which are Repealed in Union Territory of Jammu and Kashmir; And Union Territory of Ladakh

S.No.

Name of the Act

Act/Ordinance No.

1.

The Jammu and Kashmir Accountability Commission Act, 2002.

XXXVIII of 2002

2.

The Jammu and Kashmir Advocates Welfare Fund Act, 1997.

XXVI of 1997

3.

The Jammu and Kashmir Agricultural Income Tax Act, 1962.

XXI of 1962

4.

The Jammu and Kashmir [State] Agricultural Produce Marketing Regulation Act, 1997.

XXXVI of 1997

5.

The Jammu and Kashmir Anand Marriage Act, 1954.

IX of 2011

6.

The Jammu and Kashmir Animal Diseases (Control) Act, 1949.

XV of 2006

7.

The Jammu and Kashmir Apartment Ownership Act, 1989.

I of 1989

8.

The Jammu and Kashmir Arbitration and Conciliation Act, 1997.

XXXV of 1997

9.

The Jammu and Kashmir Arya Samajist Marriages (Validation) Act, 1942.

III of Svt. 1999

10.

The Jammu and Kashmir Ayurvedic and Unani Practitioners Act, 1959.

XXVI of 1959

11.

The Jammu and Kashmir Banker's Books Evidence Act, 1920.

VI of 1977

12.

The Jammu and Kashmir Benami Transactions
(Prohibition) Act, 2010.

V of 2010

13.

The Jammu and Kashmir Boilers Act, Samvat,
1991.

IV of Svt.1991

14.

Buddhists Polyandrous Marriages Prohibition
Act, 1941.

II of 1998

15.

The Jammu and Kashmir Cattle Trespass Act,
1920.

VII of 1977

16.

The Jammu and Kashmir Charitable Endowments
Act, 1989.

XIV of 1989

17.

The Jammu and Kashmir Chit Funds Act, 2016.

XI of 2016

18.

The Jammu and Kashmir Christian Marriage and
Divorce Act, 1957.

III of 1957

19.

The Jammu and Kashmir Cinematograph Act, 1933.

XXIV of 1989

20.

Code of Civil Procedure, Samvat 1977.

X of Svt. 1977

21.

Code of Criminal Procedure, Samvat 1989.

XXIII of Svt. 1989

22.

The Jammu and Kashmir Collection of Statistics
Act, 2010.

XVIII of 2010

23.

The Jammu and Kashmir [State] Commission for
Women Act, 1999.

V of 1999

24.

The Jammu and Kashmir Commission of Inquiry
Act, 1962.

XXXII of 1962

25.

The Jammu and Kashmir Consumer Protection Act,

1987.
XIV of 1987
26.
The Jammu and Kashmir Contempt of Courts Act,
1997.
XXV of 1997
27.
The Jammu and Kashmir Contingency Fund Act,
1957.
XXIV of 1957
28.
The Jammu and Kashmir Contract Act, Samvat
1977.
IX of Svt.1977
29.
The Jammu and Kashmir Court Fees Act, Samvat
1977.
VII of Svt. 1977
30.
The Jammu and Kashmir Court of Wards Act,
Samvat 1977.
LII of Svt. 1977
31.
The Jammu and Kashmir Criminal Law Amendment
Act, Svt 1993.
I of Svt. 1993
32.
The Jammu and Kashmir Criminal Law Amendment
Act, 1958.
III of 1958
33.
The Jammu and Kashmir Criminal Law Amendment
Act, 1983.
X of 1983
34.
The Jammu and Kashmir Customs Act, Svt 1958.
VIII of Svt. 1958
35.
The Jammu and Kashmir Dehi Adalats Act, 2013.
XV of 2013
36.
The Jammu and Kashmir Destruction of Records
Act, 1920.
XII of 1977
37.
The Jammu and Kashmir Displaced Persons
(Permanent Settlement) Act, 1971.
X of 1971
38.
The Jammu and Kashmir Dissolution of Muslim
Marriages Act, 1942.

X of Svt.1999

39.

The Jammu and Kashmir Dowry Restraint Act,
1960.

XXXVI of 1960

40.

The Jammu and Kashmir Easements Act, 1920.

XIV of Svt.1977

41.

The Jammu and Kashmir Electricity Act, 2010.

XIII of 2010

42.

The Jammu and Kashmir Electricity (Duty) Act,
1963.

XI of 1963

43.

The Jammu and Kashmir Employees Provident Funds
(And) Miscellaneous Provisions Act, 1961.

XV of 1961

44.

The Jammu and Kashmir Employment of Manual
Scavengers and Construction of Dry Latrines (Prohibition) Act,
2010.

XIX of 2010

45.

The Jammu and Kashmir Energy Conservation Act,
2011.

XIV of 2011

46.

The Jammu and Kashmir Epidemic Diseases Act,
1920.

XVI of 1977

47.

(State) Evacuees (Administration of Property)
(Validation of Orders, Proceedings and Acts) Act, 1958.

IV of 1958

48.

The Jammu and Kashmir Evidence Act, Samvat 1977
(1920A.D).

XIII of Svt.1977

49.

The Jammu and Kashmir Fatal Accidents Act,
Samvat 1977.

XVII of Svt.1977

50.

The Jammu and Kashmir Forest Act, Samvat 1987.

II of Svt.1987

51.

The Jammu and Kashmir Forest (Conservation)
Act, 1997.

XXX of 1997

52.
The Jammu and Kashmir Forest (Sale of Timber)
Act, Samvat 1987.
III of Svt.1987
53.
The Jammu and Kashmir General Clauses Act,
Samvat 1977.
XX of Svt. 1977
54.
The Jammu and Kashmir Good Conduct Prisoners
(Temporary Release) Act, 1978.
VII of 1978
55.
Government Servants (Held in Detention) Act,
1956.
XV of 1956
56.
The Jammu and Kashmir Grant of Permit for
Resettlement in (or Permanent Return to) the State Act, 1982.
X of 1982
57.
The Jammu and Kashmir Guardians and Wards Act,
Samvat 1977.
XIX of Svt.1977
58.
The Jammu and Kashmir Hindu Adoptions and
Maintenance Act, 1960.
II of 1960
59.
The Jammu and Kashmir Hindu Disposition of
Property Act, Samvat 1997.
XVI of Svt. 1997
60.
The Jammu and Kashmir Hindu Inheritance
(Removal of Disabilities) Act, Samvat 1997.
XVIII of Svt. 1997
61.
The Jammu and Kashmir Hindu Marriage Act, 1980.
IV of 1980
62.
The Jammu and Kashmir Hindu Marriage
(Validation of Proceedings) Act, 1963.
XVI of 1963
63.
The Jammu and Kashmir Hindu Minority and
Guardianship Act, 1957.
VII of 1957
64.
The Jammu and Kashmir Hindu Succession Act,
1956.
XXXVIII of 1956

65.
The Jammu and Kashmir Hindu Widows Remarriage and Property Act, Samvat 1989.
XXIX of Svt. 1989
66.
The Jammu and Kashmir Homeopathic Practitioner Act, 2003.
VIII of 2003
67.
The Jammu and Kashmir Identification of Prisoners Act, Samvat 1994.
IV of Svt. 1994
68.
The Jammu and Kashmir Infant Marriages Prevention Act, Samvat 1985.
I of Svt. 1985
69.
Instruments (Control of Noises) Act, 1959.
VII of 1959
70.
Judicial Officers Protection Act, 1971.
71.
The Jammu and Kashmir Juvenile Justice (Care and Protection of Children) Act, 2013.
VII of 2013
72.
The Jammu and Kashmir Juvenile Smoking Act, Samvat 1986.
II of Svt. 1986
73.
Land Acquisition Act, Samvat 1990.
X of Svt. 1990
74.
Legal Practitioners (Fees) Act, Samvat 1988.
VII of Svt. 1988
75.
The Jammu and Kashmir Legal Representatives Suits Act, Samvat 1977.
XXII of Svt. 1977
76.
The Jammu and Kashmir Legal Services Authorities Act, 1997.
XXXIII of 1997
77.
The Jammu and Kashmir Limitation Act, Samvat 1995.
IX of Svt. 1995
78.
The Jammu and Kashmir Livestock Improvement Act, Samvat 1996.
XXIII of Svt. 1996

79.
The Jammu and Kashmir Local Authorities Loans
Act, Samvat 1997.
VI of Svt. 1997
80.
The Jammu and Kashmir Lunacy Act, Samvat 1977.
XXV of Svt. 1997
81.
The Jammu and Kashmir Maintenance and Welfare
of Parents and Senior Citizens Act, 2014.
XVI of 2014
82.
The Jammu and Kashmir Majority Act, Samvat
1977.
XXVI of Svt. 1977
83.
The Jammu and Kashmir Medical Registration Act,
Samvat 1998.
IV of Svt. 1998
84.
The Jammu and Kashmir Medical Termination of
Pregnancy Act, 1974.
XXIII of 1974
85.
The Jammu and Kashmir Muslim Dower Act, Samvat
1977.
XLIV of Svt. 1977
86.
The Jammu and Kashmir Muslim Personal Law
(Shariat) Application Act, 2007.
IV of 2007
87.
The Jammu and Kashmir Muslim Specified Wakafs
and Specified Wakaf Properties (Management and Regulation) Act,
2004.
VIII of 2004
88.
The Jammu and Kashmir Nationalization of Forest
Working Act, 1987.
VII of 1987
89.
(State) Newspapers (Incitements to Offences)
Act, Svt 1971.
VIV of Svt. 1971
90.
The Jammu and Kashmir Nursing Council Act,
2012.
IV of 2012
91.
The Jammu and Kashmir Nursing Homes and
Clinical Establishments (Registration and Licensing) Act, 1963.

XXXIX of 1963

92.

Official Secrets Act, Samvat 1977.

XLIII of Svt.1977

93.

Opium Smoking Act, Samvat 2011.

XXXII of Svt. 2011

94.

Essential Services (Maintenance) Ordinance,
Samvat 2001.

IX of Svt. 2001

95.

Hoarding and Profiteering Prevention Ordinance,
Samvat 2000.

XIX of Svt. 2000

96.

Police Enhanced Penalties Ordinance, Samvat
2005.

III of Svt. 2005

97.

Prevention of Corruption Ordinance, 2001.

IV of Svt. 2001

98.

The Jammu and Kashmir Public Servants Transfer
of Immovable Property (Restriction) Ordinance, 2004.

XXX of Svt.2004

99.

The Jammu and Kashmir Partition Act, Samvat
1977.

XXX of Svt. 1977

100.

The Jammu and Kashmir Partnership Act, Samvat
1996.

V of Svt. 1996

101.

The Jammu and Kashmir Permanent Residents
Certificate (Procedure) Act, 1963.

XIII of 1963

102.

The Jammu and Kashmir Pharmacy Act, Samvat
2011.

LIII of Svt. 2011

103.

The Jammu and Kashmir Poisons Act, Samvat 1977.

XXXIV of Svt. 1977

104.

The Jammu and Kashmir Preconception and
Prenatal Sex Selection (Prohibition and Regulation) Act, 2002.

XXXI of 2002

105.

(State) Press and Publications Act, Svt 1989.

I of Svt. 1989

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The Jammu and Kashmir Prevention of Black Marketing and Maintenance of Supplies of Essential Commodities Act, 1988.

XXV of 1988

107.

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XIII of Svt. 2006

108.

The Jammu and Kashmir Prevention of Cruelty to Animals Act, Samvat 1990.

XIII of Svt. 1990

109.

The Jammu and Kashmir Prevention of Defacement of Property Act, 1985.

XIX of 1985

110.

The Jammu and Kashmir Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act, 1988.

XXIII of 1988

111.

The Jammu and Kashmir Prevention of Insult to State Honour Act, 1979.

X of 1979

112.

The Jammu and Kashmir Prisoners Act, Svt 1977.

XXXIII of Svt. 1977

113.

The Jammu and Kashmir Prisons Act, Svt 1977.

XXXI of Svt. 1977

114.

The Jammu and Kashmir Private Security Agencies (Regulation) Act, 2015.

IX of 2015

115.

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XII of 1956

116.

The Jammu and Kashmir Probation of Offenders Act, 1966.

XXXVII of 1966

117.

The Jammu and Kashmir Protection of Human Rights Act, 1997.

XV of 1997

118.

The Jammu and Kashmir Protection of Women from Domestic Violence Act, 2010.

XI of 2010

119.

The Jammu and Kashmir Provident Funds Act, Svt
1998.

XXII of Svt. 1998

120.

The Jammu and Kashmir Public Gambling Act, Svt
1977.

XVIII of Svt. 1977

121.

The Jammu and Kashmir Public Property
(Prevention of Damage) Act, 1985.

XX of 1985

122.

The Jammu and Kashmir Public Servants
(Inquiries) Act, Svt 1977.

XXVIII of Svt. 1977

123.

(State) Ranbir Penal Code, Samvat 1989.

XII of Svt. 1989

124.

The Jammu and Kashmir Registration Act, Svt.
1977.

XXXV of Svt. 1977

125.

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and Validation of Transfers of property) Act, 1955.

VI of 1955

126.

Registration of Deeds (Validating) Act, Samvat
2008.

VI of Svt. 2008

127.

Registration of Deeds (Validation) Act, 1956.

XXI of 1956

128.

Registration of Deeds (Validating) Act, 1968.

XXXIII of 1968

129.

Registration of Deeds (Validation) Act, 1976.

I of 1976

130.

Registration of Deeds (Validation) Act, 1985.

IX of 1985

131.

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Svt 1977.

L of Svt. 1977

132.

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People Act, 1957.

IV of 1957

133.

The Jammu and Kashmir Requisitioning and Acquisition of Immovable Property Act, 1968.

XXXV of 1968

134.

The Jammu and Kashmir Right to Information Act, 2009.

VIII of 2009

135.

The Jammu and Kashmir Sale of Goods Act, Svt 1996.

II of 1996

136.

Separation of Judicial and Executive Functions Act, 1966.

XL of 1966

137.

The Jammu and Kashmir Small Causes Court Act, Svt 1968.

138.

Societies Registration Act, Svt 1998.

VI of Svt. 1998

139.

The Jammu and Kashmir Specific Relief Act, Svt 1977.

XXXVIII of Svt.1977

140.

The Jammu and Kashmir Standards of Weights and Measures (Enforcement) Act, 1997.

XXXVII of 1997

141.

The Jammu and Kashmir Succession Certificate Act, Svt 1977.

XXXIX of Svt. 1977

142.

Succession (Property Protection) Act, Svt 1977.

XXXVI of Svt. 1977

143.

The Jammu and Kashmir Suits Valuation Act, Svt 1977.

XXXVII of Svt.1977

144.

The Jammu and Kashmir Suppression of Indecent Advertisements Act, Svt 2003.

IX of Svt. 2003

145.

The Jammu and Kashmir Transfer of Property Act, Svt 1977.

XLII of Svt. 1977

146.

The Jammu and Kashmir Transplantation of Human Organs Act, 1997.

III of 1997

147.

The Jammu and Kashmir Trusts Act, Svt 1977.

XLI of Svt. 1977

148.

The Jammu and Kashmir Venereal Diseases Act, Svt 2000.

XXI of Svt. 2000

149.

Veterinary Council Act, 2001.

XXI of 2001

150.

The Jammu and Kashmir [State] Village and Town Patrol Act, 1959.

XXIV of 1959

151.

The Jammu and Kashmir Village Sanitation Act, Svt. 1990.

V of Svt. 1990

152.

The Jammu and Kashmir Wakafs Act, 2001.

III of 2001

153.

The Jammu and Kashmir Wildlife (Protection) Act, 1978.

VIII of 1978

S.No.

Name of the Governor's Act

Governor's Act No.

1.

The Jammu and Kashmir State Trust for Welfare of Persons with Autism Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 2018.

VI of 2018

2.

The Jammu and Kashmir Drugs and Magic Remedies (Objectionable Advertisements) Act, 2018.

VIII of 2018

3.

The Jammu and Kashmir Single Window (Industrial Investment and Business Facilitation) Act, 2018.

X of 2018

4.

The Jammu and Kashmir Commercial Courts Act, 2018.

XIII of 2018

5.

The Jammu and Kashmir Family Courts Act, 2018.

XXIV of 2018

6.

The Jammu and Kashmir Aadhar (Targeted Delivery of Financial and other Subsidies, Benefits and Services) Act, 2018.

XXXIV of 2018

7.

The Jammu and Kashmir Protection of Children From Sexual Violence Act, 2018.

II of 2018

8.

The Jammu and Kashmir Rights of Persons with Disabilities Act, 2018.

XL of 2018

9.

The Jammu and Kashmir Prohibition of Benami Property Transactions Act, 2018.

XI III of 2018

10.

The Jammu and Kashmir State Commission for Protection of Women and Child Rights Act, 2018.

XLVI of 2018

11.

The Jammu and Kashmir Real Estate (Regulation and Development) Act, 2018.

LIII of 2018

Table - 4

State Acts Including Governor's Acts that shall Remain in Force in Union Territory of Jammu and Kashmir; And Union Territory of Ladakh

S.No.

Name of the Act

Act/Ordinance No.

1.

The Jammu and Kashmir Aerial Ropeways Act, 2002

XII of 2002

2.

The Jammu and Kashmir Agrarian Reforms Act, 1976

XVII of 1976

3.

Agriculturists' Relief Act, Svt. 1983

I of Svt. 1983

4.

The Jammu and Kashmir Government Aid to Agriculturists and Land Improvement Act, Svt. 1993

VII of Svt. 1993

5.

The Jammu and Kashmir State Aid to Industries Act 1961

XXII of 1961

6.

The Jammu and Kashmir Alienation of Land Act,

Svt. 1995

V of Svt. 1995

7.

The Jammu and Kashmir Anatomy Act, 1959

XXII of 1959

8.

The Jammu and Kashmir Ancient Monuments

Preservation Act, Svt. 1977

V of Svt 1977

9.

The Jammu and Kashmir Baba Ghulam Shah Badshah

University Act, 2002

XVI of 2002

10.

The Jammu and Kashmir Big Landed Estates

Abolition Act, Svt. 2007

XVII of Svt. 2007

11.

The Jammu and Kashmir Board of Professional

Entrance Examination Act, 2002

XXV of 2002

12.

The Jammu and Kashmir Board of School Education

Act, 1975

XXVIII of 1975

13.

The Jammu and Kashmir State Board of Technical

Education Act, 2002

XXIV of 2002

14.

The Jammu and Kashmir Brick Kilns (Regulation)

Act, 2010

XV II of 2010

15.

Camping and Mooring Sites Act, Svt. 2004

XII of Svt.2004

16.

The Jammu and Kashmir Chowkidari Act, 1956

XXXVII of 1956

17.

The Jammu and Kashmir Civic Laws (Special

Provisions) Act, 2014

III of 2014

18.

The Jammu and Kashmir Civil Courts Act, Svt.

1977

XLVI of Svt.1977

19.

The Jammu and Kashmir Civil Services

(Decentralization and Recruitment) Act, 2010

XVI of 2010

20.
The Jammu and Kashmir Civil Services (Special Provisions) Act, 2010
XIV of 2010
21.
The Srinagar and Jammu Cluster Universities Act, 2016.
III of 2016
22.
The Jammu and Kashmir State Commission for Backward Classes Act, 1997
XII of 1997
23.
The Jammu and Kashmir Common Lands (Regulation) Act, 1956
XXIV of 1956
24.
The Jammu and Kashmir Consolidation of Holdings Act, 1962
V of 1962
25.
The Jammu and Kashmir Control of Building Operations Act, 1988
XV of 1988
26.
The Jammu and Kashmir Cooperative Societies Act, 1989.
X of 1989
27.
The Jammu and Kashmir Debtors Relief Act, 1976
XV of 1976
28.
The Jammu and Kashmir Delivery of Books and Newspapers (Public Libraries) Act, 1961
XIII of 1961
29.
The Jammu and Kashmir Deputy Ministers' Salaries and Allowances Act, 1957
VI of 1957
30.
The Jammu and Kashmir Deputy Speaker's and Deputy Chairman's (Emoluments) Act, 1956
XXII of 1956
31.
The Jammu and Kashmir Development Act, 1970
XIX of 1970
32.
The Jammu and Kashmir Egress and Internal Movement (Control) Ordinance, Svt.2005.
V of Svt.2005
- 33.

The Jammu and Kashmir Enemy Agents Ordinance,
Svt.2005.

VIII of Svt.2005

34.

The Jammu and Kashmir State Emergency Relief
Fund Act, 1960

XIII of 1960

35.

The Jammu and Kashmir Excise Act, Samvat 1958

--

36.

The Jammu and Kashmir Extraction of Resin Act,
1988.

IX of 1988

37.

The Jammu and Kashmir State Evacuees
(Administration of Property) Act, Samvat 2006 (1949 A.D).

VI of Svt. 2006

38.

The Jammu and Kashmir Ferry Boats Control Act,
1971.

XVIII of 1971

39.

The Jammu and Kashmir State Finance Commission
Act, 2006

XVIII of 2006

40.

The Jammu and Kashmir Finance Commission for
Panchayats and Municipalities Act, 2011

XVI of 2011

41.

The Jammu and Kashmir Fire Force Act, 1967.

XXII of 1967

42.

The Jammu and Kashmir Fiscal Responsibility and
Budget Management Act, 2006.

XII of 2006

43.

The Jammu and Kashmir Fisheries Act, 2018.

XVI of 2018

44.

The Jammu and Kashmir Flood Plain Zones
(Regulation and Development) Act, 2005. XVII of 2005

45.

The Jammu and Kashmir State Forest Corporation
Act, 1978.

XII of 1978

46.

The Jammu and Kashmir Forest (Protection) Force
Act, 2001.

VI of 2001

47.
The Jammu and Kashmir Fruit Nurseries
(Licensing) Act, 1987.
XXII of 1987
48.
The Jammu and Kashmir Gift Goods (Unlawful
Possession) Act, 1963.
XL of 1963
49.
The Jammu and Kashmir Golf Development and
Management Authority Act, 2013.
VIII of 2013
50.
The Jammu and Kashmir Goods and Services Tax
Act, 2017.
V of 2017
51.
The Jammu and Kashmir Government Gazette Act,
Svt. 1945.
XII of Svt. 1945
52.
The Jammu and Kashmir Governor's Special
Security Force Act, 2018
Governors Act No.XLII of 2018
53.
The Jammu and Kashmir Habitual Offenders
(Control and Reform) Act, 1956.
XI of 1956
54.
The Jammu and Kashmir Handicrafts (Quality
Control) Act, 1978.
IV of 1978
55.
The Jammu and Kashmir Heritage Conservation and
Preservation Act, 2010.
XV of 2010
56.
The Jammu and Kashmir Highways Act, Svt. 2007.
XXVII of Svt. 2007
57.
The Jammu and Kashmir Home Guards Act, Svt.
2006.
III of Svt. 2006
58.
The Jammu and Kashmir Housing Board Act, 1976.
VII of 1976
59.
The Jammu and Kashmir Industrial Establishments
(National and Festival) Holidays Act, 1974.
XIII of 1974
- 60.

The Jammu and Kashmir Inspector General of Prisons (Change in Designation) Act, 2001.
XIII of 2001
61.
The Jammu and Kashmir Islamic University of Science and Technology Kashmir Act, 2005.
XVIII of 2005
62.
The Jammu and Kashmir Kahcharai Act, Svt. 2011.
XVIII of Svt. 2011
63.
Kashmir and Jammu Universities Act, 1969.
XXIV of 1969
64.
Kashmir Silk Protection Act, 1964.
65.
The Jammu and Kashmir Khadi and Village Industries Board Act, 1965.
XVI of 1965
66.
Ladakh Autonomous Hill Development Council Act, 1997.
XXXI of 1997
67.
Ladakh Budhists Succession to Property Act, Svt. 2000.
XVIII of Svt. 2000
68.
The Jammu and Kashmir Lambardari Act, 1972.
X of 1972
69.
The Jammu and Kashmir Land Grants Act, 1960.
XXXVIII of 1960
70.
The Jammu and Kashmir Land Improvement Schemes Act, 1972.
XXIV of 1972
71.
The Jammu and Kashmir Land Revenue Act, Svt. 1996.
XII of Svt. 1996
72.
The Jammu and Kashmir Legislative Assembly Speaker's Emoluments Act, 1956.
IV of 1956
73.
The Jammu and Kashmir Legislative Council Chairman's (Emoluments) Act, 1962.
XXVIII of 1962
74.
The Jammu and Kashmir State Legislature

Members' Pension Act, 1984.

II of 1984

75.

The Jammu and Kashmir Legislature (Prevention of Disqualification) Act, 1962.

XVI of 1962

76.

The Jammu and Kashmir State Legislature Proceedings (Protection of Publication) Act, 1960.

XXXVII of 1960

77.

Levy of Tolls Act, Svt.1995.

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78.

The Jammu and Kashmir Migrant Immovable Property (Preservation, Protection and Restraint on Distress Sales) Act, 1997.

XVI of 1997

79.

The Jammu and Kashmir Migrants (Stay of Proceedings) Act, 1997.

XVII of 1997

80.

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VI of 1956

81.

The Jammu and Kashmir Ministers and Presiding Officers Medical Facilities Act, 1975.

XXII of 1975

82.

The Jammu and Kashmir Money Lenders and Accredited Loan Providers Act, 2010.

XXIII of 2010

83.

The Jammu and Kashmir Motor Spirit and Diesel Oil (Taxation of Sales) Act, Svt. 2005.

V of Svt. 2005

84.

The Jammu and Kashmir Motor Vehicles Taxation Act, 1957.

XXVI of 1957

85.

The Jammu and Kashmir Mulberry Protection Act, Svt. 2006.

X of Svt. 2006

86.

The Jammu and Kashmir Municipal Act, 2000.

XX of 2000

87.

The Jammu and Kashmir Municipal Corporation

Act, 2000.

XXI of 2000

88.

The Jammu and Kashmir Municipal Ombudsman Act,
2010.

XX of 2010

89.

The Jammu and Kashmir Municipalities Public
Disclosure Act, 2010.

XXIV of 2010

90.

The Jammu and Kashmir Muslim Marriages
Registration Act, 1981.

XXII of 1981

91.

The Jammu and Kashmir Namdha Quality Control
Act, Svt. 2010.

VI of Svt. 2010

92.

National Defence Fund Donation of Immovable
Property (Exemption from Stamp Duty and Registration) Act, 1963.

V of 1963

93.

The Jammu and Kashmir Natural Calamities
Destroyed Areas Improvement Act, Svt. 2011.

XXXVIII of Svt. 2011

94.

The Jammu and Kashmir Non-Biodegradable
Material (Management) Handling and Disposal Act, 2007.

XII of 2007

95.

The Jammu and Kashmir Obsolete Laws (Repeal)
Act, 2010.

XXVII of 2010

96.

The Jammu and Kashmir Ombudsman for Panchayats
Act, 2014.

V of 2014

97.

The Jammu and Kashmir Panchayati Raj Act, 1989.

IX of 1989

98.

The Jammu and Kashmir Paramedical Council Act,
2014.

VII of 2014

99.

The Jammu and Kashmir Passengers Taxation Act,
1963.

XII of 1963

100.

The Jammu and Kashmir Plant Disease and Pests

Act, 1973.

XIV of 1973

101.

Plyboard Industries (Acquisition of Shares and of the Industrial Undertakings) Act, 1987.

VI of 1987

102.

Police Act, Svt. 1983.

II of Svt. 1983

103.

The Jammu and Kashmir Preservation of Specified Trees Act, 1969

V of 1969

104.

The Jammu and Kashmir Prevention of Beggary Act, 1960.

XL of 1960

105.

The Jammu and Kashmir Prevention of Fragmentation of Agricultural Holdings Act, 1960.

XXV of 1960

106.

Prevention of Ribbon Development Act, Svt.

2007.

XXVI of Svt. 2007

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Prevention of Rum Rasum Act, Svt. 1997.

I of Svt. 1997

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The Jammu and Kashmir Prevention and Suppression of Sabotages Activities Act, 1965.

XXII of 1965

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The Jammu and Kashmir Prevention of Unfair Means Examination Act, 1987.

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XXII of 2002

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The Jammu and Kashmir Professions, Trades, Callings and Employment Tax Act, 2005.

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The Jammu and Kashmir Prohibition on Conversion of Land and Alienation of Orchards Act, 1975.

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114.
The Jammu and Kashmir Prohibition on
Manufacture of Specified Copper Utensils (By Machine) Act, 2006.
XIII of 2006
115.
The Jammu and Kashmir Prohibition of Ragging
Act, 2011.
VI of 2011
116.
The Jammu and Kashmir State Prohibition of
Smoking (Cinema and Theatre Halls) Act, Svt. 2009.
XVIII of Svt. 2009
117.
The Jammu and Kashmir Prohibition of Smoking
and Non-Smokers Health Protection in Public Service Vehicles
Act, 1997.
XX of 1997
118.
The Jammu and Kashmir Property Rights to Slum
Dwellers Act, 2012.
XI of 2012
119.
The Jammu and Kashmir Property Tax Board Act,
2013.
XI of 2013
120.
The Jammu and Kashmir Protection of Interest of
Depositors (in Financial Establishments) Act, 2018.
XIII of 2018
121.
The Jammu and Kashmir Public Men and Public
Servants Declaration of Assets and Other Provisions Act, 1983.
V of 1983
122.
The Jammu and Kashmir Public Premises (Eviction
of Un-authorised Occupants) Act, 1988.
XVII of 1988
123.
The Jammu and Kashmir Public Safety Act, 1978.
VI of 1978
124.
The Jammu and Kashmir Public Services Guarantee
Act, 2011.
IX of 2011
125.
The Jammu and Kashmir Registration of
Contractors Act, 1956.
XVI of 1956
126.
The Jammu and Kashmir Registration of Tourist
Trade Act, 1978.

IX of 1978

127.

The Jammu and Kashmir Regulation of Accounts

Act, Svt. 2001.

XIV of Svt. 2001

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The Jammu and Kashmir Reservation Act, 2004.

XIV of 2004

129.

The Jammu and Kashmir Residential and

Commercial Tenancy Act, 2012.

V of 2012

130.

The Jammu and Kashmir Restitution of Mortgaged

Properties Act, 1976.

XIV of 1976

131.

The Jammu and Kashmir Right of Prior Purchase

Act, Svt. 1993.

II of Svt. 1993

132.

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2018.

V of 2018

133.

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Kashmir State Legislature Act, 1960.

XIX of 1960

135.

Salaries and Allowances of Leader of Opposition

in the State Legislature Act, 1985.

XVI of 1985

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The Sapphire Act, Svt. 1989.

XVI of Svt. 1989

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The Jammu and Kashmir School Education Act,

2002.

XXI of 2002

138.

The Jammu and Kashmir Self-Reliant Cooperatives

Act, 1999.

X of 1999

139.

The Jammu and Kashmir State Sheep and Sheep

Products Development Board Act, 1979.

IX of 1979

140.

Sher-i-Kashmir University of Agricultural Sciences and Technology Act, 1982.

VII of 1982

141.

Sher-i-Kashmir Institute of Medical Sciences (Grant of Degrees) Act, 1983.

XII of 1983

142.

The Jammu and Kashmir Shri Amarnath Ji Shrine Act, 2000.

XVIII of 2000

143.

The Jammu and Kashmir Shri Mata Sukhrala Devi Ji and Shri Mata Bala Sundari Shrine Act, 2013.

III of 2013

144.

The Jammu and Kashmir Shri Mata Vaishno Devi Shrine Act, 1988.

XVI of 1988

145.

The Jammu and Kashmir Shri Mata Vaishno Devi University Act, 1999.

XII of 1999

146.

The Jammu and Kashmir Shri Shiv Khori Shrine Act, 2008.

IV of 2008

147.

The Jammu and Kashmir Sikh Gurdwaras and Religious Endowments Act, 1973.

XV of 1973

148.

The Jammu and Kashmir Silk (Development and Protection) Act, 1988.

XXVIII of 1988

149.

The Jammu and Kashmir Special Security Group Act, 2000.

VI of 2000

150.

The Jammu and Kashmir Special Tribunal Act, 1988.

XIX of 1988

151.

Stamp Act, Svt. 1977.

XL of Svt. 1977

152.

The Jammu and Kashmir Tenancy Act, Svt. 1980.

II of Svt. 1980

153.

The Jammu and Kashmir Tenancy (Stay of

Ejectment Proceedings) Act, 1966.

XXXIII of 1966

154.

The Jammu and Kashmir State Town Planning Act,
1963.

XX of 1963

155.

The Jammu and Kashmir Treasure Trove Act, Svt.
1954.

156.

The Jammu and Kashmir Underground Public
Utilities (Acquisition of Rights of User in Land) Act, 2014.

IV of 2014

157.

Urban Immovable Property Tax (Repeal and
Saving) Act, 2002.

XXVIII of 2002

158.

The University of Ladakh Act, 2018.

Governor's Act No. LVI of 2018

159.

The Jammu and Kashmir Urban Property (Ceiling)
Act, 1971.

XII of 1971

160.

Usurious Loans Act, Svt. 1977.

XLVII of Svt. 1977

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The Jammu and Kashmir Utilization of Lands Act,
Svt. 2010.

IX of Svt. 2010

162.

The Jammu and Kashmir Vaccination Act, 1967.

XXI of 1967

163.

The Jammu and Kashmir Vegetable Seeds Act, Svt.
2009.

XII of Svt. 2009

164.

The Jammu and Kashmir State Vigilance
Commission Act, 2011.

I of 2011

165.

The Jammu and Kashmir Water Resources
(Regulation and Management) Act, 2010.

XXI of 2010

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The Jammu and Kashmir Willow (Prohibition on
Export and Movement) Act, 2000.

XVI of 2000

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